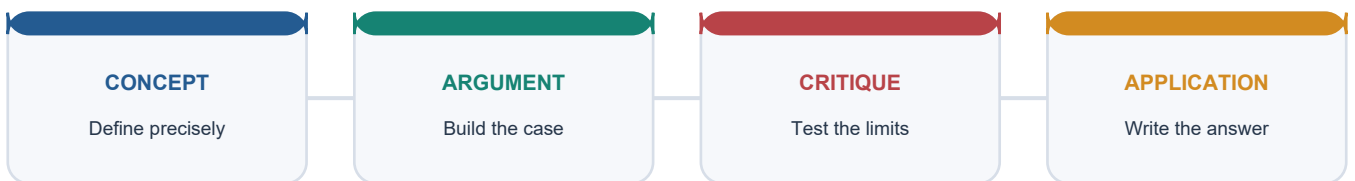


COMPLETE LEARNING SESSION

State Legislature - Complete Learning Session

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 20 - State Legislature - Complete Topic Package

Subject: Indian Polity | GS-II + Prelims | Legal control checked: 7 September 2026

Source and boundary control

- Canonical owners read first: `basic/State-Legislature.md`, `advanced/20_State-Legislature.md`, the complete topic owner, and bounded Parliament/Governor/Anti-Defection cross-links.
- OCR checks: *Indian Polity* by M. Laxmikanth, State Legislature chapter, PDF pages 694-723; corresponding courseware chapter, PDF pages 678-708.
- Primary controls: repository-held official Constitution text; official UPSC papers and final local keys; official Supreme Court judgments including 2025 INSC 481 and 2025 INSC 1333.
- [LIMIT] House rules and committee practice vary by State. No uniform sitting count, committee size, discretionary power or current Council membership figure is invented.
- [CURRENT] Article 168(2)'s official constitutional text names Andhra Pradesh, Telangana, Uttar Pradesh, Bihar, Maharashtra and Karnataka as States with two Houses. This is a text statement, not an inferred membership count.
- [CURRENT] The 20 November 2025 Article 143 opinion is advisory: it rejects rigid judicial timelines and deemed assent, yet preserves limited mandamus for glaring prolonged unexplained inaction.

BASIC LEARNING SESSION

SESSION 1 - CONSTITUTIONAL ARCHITECTURE: NO UNIFORM STATE LEGISLATURE

VISUAL FIRST - CONCEPT GATEWAY

Article 168: Governor + Assembly [+ Council]

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Every State has an Assembly, but only six have a Legislative Council.

Technical definition: Article 168 creates Governor-plus-Assembly unicameralism or Governor-plus-two-House bicameralism.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

State legislature architecture is non-uniform because the Assembly is universal while the Council is optional.

MUST-WRITE KEYWORDS

- Article 168
- Assembly
- Council
- unicameral
- bicameral

How to use them: Frame the answer through Article 168; define Assembly, connect Council with unicameral to explain the mechanism, and use bicameral for the decisive comparison or qualification.

Visual 1 - Article 168 structure

```

STATE LEGISLATURE
|
+-- Governor (constitutional component)
|
+-- Legislative Assembly in every State
|
+-- Legislative Council only in six States

```

Caption: A State legislature includes the Governor, but the Governor is not a member of either House.

- [FACT] Article 168 provides a legislature for every State consisting of the Governor and one or two Houses.
- [FACT] Every State has a Legislative Assembly. Only specified States have a Legislative Council.
- [FACT] A unicameral legislature is Governor plus Assembly; a bicameral legislature is Governor plus Assembly plus Council.
- [ANALYSIS] State bicameralism is optional and asymmetric. It is not a federal necessity comparable to the Rajya Sabha.
- [LIMIT] Inclusion of the Governor under Article 168 does not confer member privileges under Article 194.

Visual 2 - Six bicameral States

Mnemonic	State
K	Karnataka
A	Andhra Pradesh
T	Telangana
B	Bihar
U	Uttar Pradesh
M	Maharashtra

Mnemonic: KATBUM - the six States with Legislative Councils.

- [FACT] Jammu and Kashmir's Legislative Council was abolished through the 2019 reorganisation framework.
- [FACT] Tamil Nadu's 2010 Council-creation legislation was not brought into force.
- [LIMIT] Proposals or Assembly resolutions for a Council do not themselves create one. Parliament must enact the Article 169 law.

STATE-LEGISLATURE ANSWER UNIT

Claim: Article 168 makes the Assembly universal and a Council optional.

Named evidence: Article 168(1)-(2), read with Article 169.

Analysis: The design protects a directly elected confidence chamber while permitting a State-specific second chamber.

Qualification: The Governor is a component of the legislature, not a member of either House.

Evidence to deploy: Article 168(1)-(2), read with Article 169.

Prelims trap: Do not transfer Article 194 member privileges to the Governor.

Mains use: Open a bicameralism answer by separating constitutional composition from House membership.

Mini recap: Every State has an Assembly; a Council exists only through the constitutional Article 168-169 design.

CLOSING RECALL FLOW - CONSTITUTIONAL ARCHITECTURE: NO UNIFORM STATE LEGISLATURE

START / CONCEPT: Constitutional architecture: no uniform State legislature

|

v

EXACT TERMS: Article 168 • Assembly • Council • unicameral • bicameral

|

v

MECHANISM / ARGUMENT: Direct election makes the Assembly mandatory; Article 169 permits a second chamber after State and parliamentary action.

|

v

CONSEQUENCE / CONTRAST: The design preserves democratic primacy while allowing State-specific institutional choice.

|

v

UPSC TRAP / ANSWER-USE: The Governor is a legislative component, not a House member.

|

v

ANSWER-GRABBING FORMULATION: State legislature architecture is non-uniform because the Assembly is universal while the Council is optional.

SESSION 2 - ARTICLE 169: CREATION OR ABOLITION OF A LEGISLATIVE COUNCIL

VISUAL FIRST - CONCEPT GATEWAY

Assembly special majority -> Parliament ordinary law

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A State Assembly initiates Council creation or abolition, and Parliament decides by ordinary law.

Technical definition: Article 169 requires an Assembly total-membership majority plus two-thirds present and voting before Parliament may legislate.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

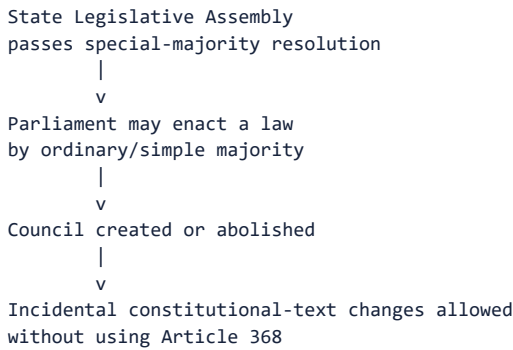
Article 169 makes State bicameralism optional without using the Article 368 amendment procedure.

MUST-WRITE KEYWORDS

- Article 169
- special majority
- Parliament
- creation
- abolition

How to use them: Frame the answer through Article 169; define special majority, connect Parliament with creation to explain the mechanism, and use abolition for the decisive comparison or qualification.

Visual 3 - Article 169 sequence



- [FACT] The Assembly resolution requires:
 - a majority of the total membership of the Assembly; and
 - a majority of not less than two-thirds of members present and voting.
- [FACT] Parliament may then provide by law for creation or abolition.
- [FACT] Parliament passes that law by ordinary legislative majority.
- [FACT] Article 169 expressly prevents the law from being treated as a constitutional amendment for Article 368.
- [LIMIT] Parliament is enabled, not mechanically compelled, by the Assembly resolution.
- [ANALYSIS] The design lets each State express institutional preference while preserving Parliament's final law-making control.

Visual 4 - Majority trap

Stage	Required majority
Assembly resolution	Total-membership majority plus two-thirds present and voting
Parliamentary law	Simple/ordinary majority
State ratification under Article 368	Not required

UPSC trap: The special majority belongs to the initiating Assembly resolution, not to Parliament's later Article 169 Act.

STATE-LEGISLATURE ANSWER UNIT

Claim: Article 169 makes bicameralism reversible without using Article 368.

Named evidence: Article 169 requires a majority of the Assembly's total membership plus two-thirds present and voting; Parliament then acts by ordinary law.

Analysis: State initiative and parliamentary enactment divide political choice from legal creation.

Qualification: The Assembly resolution enables Parliament but does not itself create or abolish a Council.

Evidence to deploy: Article 169 requires a majority of the Assembly's total membership plus two-thirds present and voting; Parliament then acts by ordinary law.

Prelims trap: Do not assign the special majority to Parliament.

Mains use: Use Article 169 to explain why Councils are optional and institutionally fragile.

Mini recap: Special Assembly resolution first; ordinary parliamentary law second.

CLOSING RECALL FLOW - ARTICLE 169: CREATION OR ABOLITION OF A LEGISLATIVE COUNCIL

START / CONCEPT: Article 169: creation or abolition of a Legislative Council

|

v

EXACT TERMS: Article 169 · special majority · Parliament · creation · abolition

|

v

MECHANISM / ARGUMENT: The Assembly passes the enabling resolution, then Parliament may enact incidental constitutional changes by ordinary law.

|

v

CONSEQUENCE / CONTRAST: Council existence reflects State preference but remains dependent on parliamentary enactment.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: the Assembly resolution binds neither Parliament nor other States.

|

v

ANSWER-GRABBING FORMULATION: Article 169 makes State bicameralism optional without using the Article 368 amendment procedure.

SESSION 3 - LEGISLATIVE ASSEMBLY: POPULAR CHAMBER AND CONFIDENCE CHAMBER

VISUAL FIRST - CONCEPT GATEWAY

Direct election -> Assembly -> confidence and supply

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The directly elected Assembly controls representation, finance and government survival.

Technical definition: Articles 170, 326 and 164(2) link territorial election to the confidence-holding chamber.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The Legislative Assembly is both the popular House and the chamber that sustains the State ministry.

MUST-WRITE KEYWORDS

- Article 170
- direct election
- Assembly
- confidence
- Article 164

How to use them: Frame the answer through Article 170; define direct election, connect Assembly with confidence to explain the mechanism, and use Article 164 for the decisive comparison or qualification.

Visual 5 - Democratic chain

Adult citizens

|

direct territorial election

|

Legislative Assembly

|

confidence / no-confidence

|

Chief Minister and Council of Ministers

- [FACT] Article 170 ordinarily provides 60 to 500 directly elected members from territorial constituencies.
- [FACT] Special constitutional or statutory arrangements permit smaller Assemblies, including Sikkim 32, Goa 40 and Mizoram 40.

- [FACT] Universal adult suffrage under Article 326 governs direct election.
- [FACT] The Council of Ministers is collectively responsible only to the Legislative Assembly under Article 164(2).
- [ANALYSIS] Direct election plus confidence control makes the Assembly the democratic and political centre of State government.

Visual 6 - Representation controls

Control	Position
Territorial constituencies	Direct election
Population-seat readjustment	Frozen until relevant figures of first census after 2026 are published
SC/ST reservation	Constitutionally protected and population-linked
Anglo-Indian nomination	Lapsed under the 104th Amendment
Women's reservation	Constitutionally provided, not yet operational

- [FACT] The 84th Amendment continued the freeze on total seat readjustment until publication of the first census taken after 2026.
- [LIMIT] The year 2026 did not itself trigger delimitation.
- [CURRENT] The 2026 legislative package that sought an earlier route using the 2011 Census failed; the existing constitutional sequence remains controlling.

STATE-LEGISLATURE ANSWER UNIT

Claim: The Assembly is the State's popular, confidence and financial chamber.

Named evidence: Articles 170 and 326 establish territorial direct election; Article 164(2) makes the ministry responsible to the Assembly.

Analysis: Direct mandate explains Assembly primacy over government survival and public finance.

Qualification: Article 170's ordinary 60-500 range is subject to constitutionally or statutorily authorised exceptions.

Evidence to deploy: Articles 170 and 326 establish territorial direct election; Article 164(2) makes the ministry responsible to the Assembly.

Prelims trap: Do not infer that every Assembly must contain at least sixty members.

Mains use: Link direct election to confidence, grants and final control over ordinary legislation.

Mini recap: Popular mandate, confidence and supply make the Assembly institutionally primary.

CLOSING RECALL FLOW - LEGISLATIVE ASSEMBLY: POPULAR CHAMBER AND CONFIDENCE CHAMBER

START / CONCEPT: Legislative Assembly: popular chamber and confidence chamber

|

v

EXACT TERMS: Article 170 • direct election • Assembly • confidence • Article 164

|

v

MECHANISM / ARGUMENT: Citizens elect territorial representatives whose majority authorises and scrutinises the Council of Ministers.

|

v

CONSEQUENCE / CONTRAST: Direct mandate explains Assembly dominance over money, confidence and Council disagreement.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: the ordinary 60-500 range has constitutional and statutory exceptions.

|

v

ANSWER-GRABBING FORMULATION: The Legislative Assembly is both the popular House and the chamber that sustains the State ministry.

SESSION 4 - LEGISLATIVE COUNCIL: COMPOSITION AND REPRESENTATIONAL LOGIC

VISUAL FIRST - CONCEPT GATEWAY

1/3 local + 1/12 graduates + 1/12 teachers + 1/3 MLAs + remainder nominated

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Council mixes local, graduate, teacher, MLA-elected and nominated representation.

Technical definition: Article 171 fixes a maximum one-third Assembly ratio, minimum forty and five electoral or nomination streams.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Legislative Council composition combines indirect STV election with gubernatorial nomination.

MUST-WRITE KEYWORDS

- Article 171
- local authorities
- graduates
- teachers
- STV

How to use them: Frame the answer through Article 171; define local authorities, connect graduates with teachers to explain the mechanism, and use STV for the decisive comparison or qualification.

Visual 7 - Article 171 composition wheel

1/3 local authorities
1/12 graduates
1/12 teachers
1/3 elected by MLAs from non-MLAs
1/6 nominated by Governor

- [FACT] Council strength cannot exceed one-third of the Assembly strength and cannot ordinarily be below 40.
- [FACT] Five-sixths are indirectly elected and one-sixth are nominated.
- [FACT] Elected categories use proportional representation by means of the single transferable vote.
- [FACT] Governor-nominated members possess special knowledge or practical experience in literature, science, art, the cooperative movement or social service.
- [LIMIT] "Education" is not the exact constitutional category; "literature" and "science" are.

Visual 8 - Electoral colleges

Share	Electoral source	Core logic
1/3	Municipalities, district boards and other specified local authorities	Local-government voice
1/12	Graduates of prescribed standing	Functional constituency
1/12	Teachers of prescribed standing in qualifying institutions	Functional constituency
1/3	MLAs elect non-MLAs	Assembly-linked membership
1/6	Governor nominates	Expertise and public service

- [ANALYSIS] The Council mixes territorial-local, occupational, Assembly-mediated and expert representation.
- [ANALYSIS] This diversity can improve scrutiny, but old graduate/teacher franchise categories invite reform questions about contemporary representativeness.

STATE-LEGISLATURE ANSWER UNIT

Claim: Article 171 creates mixed indirect and nominated representation rather than a federal chamber.

Named evidence: Article 171 fixes the one-third ceiling, forty-member floor and five electoral or nomination streams.

Analysis: The mixture can widen deliberation, but occupational electorates and nomination also create representativeness and patronage concerns.

Qualification: Fractions are applied 'as nearly as may be'; Parliament may regulate details by law.

Evidence to deploy: Article 171 fixes the one-third ceiling, forty-member floor and five electoral or nomination streams.

Prelims trap: Do not call Council members directly elected by the general electorate.

Mains use: Use the exact fractions before evaluating whether functional constituencies remain representative.

Mini recap: The Council diversifies representation but lacks the Rajya Sabha's federal basis.

CLOSING RECALL FLOW - LEGISLATIVE COUNCIL: COMPOSITION AND REPRESENTATIONAL LOGIC

START / CONCEPT: Legislative Council: composition and representational logic

|

v

EXACT TERMS: Article 171 · local authorities · graduates · teachers · STV

|

v

MECHANISM / ARGUMENT: Distinct electoral colleges choose five-sixths, while the Governor nominates one-sixth from listed fields.

|

v

CONSEQUENCE / CONTRAST: The mix can diversify scrutiny but raises equality and patronage questions.

|

v

UPSC TRAP / ANSWER-USE: Education is not the exact nomination category; literature and science are.

|

v

ANSWER-GRABBING FORMULATION: Legislative Council composition combines indirect STV election with gubernatorial nomination.

SESSION 5 - DURATION: DISSOLUTION VERSUS CONTINUITY

VISUAL FIRST - CONCEPT GATEWAY

Assembly: five-year normal life / Council: continuing body

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Assemblies may dissolve, while Councils continue through staggered retirement.

Technical definition: Article 172 gives an Assembly five years unless sooner dissolved and makes the Council permanent with one-third retiring biennially.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

House duration balances electoral renewal with optional institutional continuity.

MUST-WRITE KEYWORDS

- Article 172
- five years
- dissolution
- permanent Council
- retirement

How to use them: Frame the answer through Article 172; define five years, connect dissolution with permanent Council to explain the mechanism, and use retirement for the decisive comparison or qualification.

Visual 9 - House life cycle

ASSEMBLY	COUNCIL
5-year normal term	permanent chamber
may be dissolved	cannot be dissolved
entire House renewed	1/3 retires every 2 years
	member term: 6 years

- [FACT] Article 172 gives an Assembly a normal five-year term from its first meeting unless sooner dissolved.
- [FACT] During a National Emergency, Parliament may extend an Assembly term one year at a time, but not beyond six months after the emergency ends.
- [FACT] The Council is permanent; one-third retire every second year.
- [ANALYSIS] Council continuity can preserve institutional memory when the Assembly changes abruptly.

STATE-LEGISLATURE ANSWER UNIT

Claim: Article 172 contrasts a dissolvable Assembly with a permanent Council.

Named evidence: Article 172 gives the Assembly five years from its first meeting unless sooner dissolved and makes the Council non-dissolving.

Analysis: Continuity can preserve institutional memory while dissolution renews democratic authority.

Qualification: Emergency extension is by Parliament, one year at a time, and cannot continue beyond six months after the Emergency ends.

Evidence to deploy: Article 172 gives the Assembly five years from its first meeting unless sooner dissolved and makes the Council non-dissolving.

Prelims trap: Do not describe a Council as having a collective six-year term.

Mains use: Contrast institutional continuity with the Assembly's renewable popular mandate.

Mini recap: Assembly dissolves; Council continues; councillors retire by rotation.

CLOSING RECALL FLOW - DURATION: DISSOLUTION VERSUS CONTINUITY

START / CONCEPT: Duration: dissolution versus continuity

|
v

EXACT TERMS: Article 172 • five years • dissolution • permanent Council • retirement

|
v

MECHANISM / ARGUMENT: Assembly membership renews together; Council membership renews in staggered six-year terms.

|
v

CONSEQUENCE / CONTRAST: The contrast supports democratic change alongside legislative memory.

|
v

UPSC TRAP / ANSWER-USE: A National Emergency extension is annual and cannot exceed six months after its end.

|
v

ANSWER-GRABBING FORMULATION: House duration balances electoral renewal with optional institutional continuity.

SESSION 6 - QUALIFICATIONS, OATH AND DISQUALIFICATION

VISUAL FIRST - CONCEPT GATEWAY

Entry -> oath -> membership -> disqualification forum

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Membership requires constitutional eligibility, oath and freedom from listed disqualifications.

Technical definition: Articles 173, 188 and 190-193 separate entry, oath, vacancy, disqualification decision and unauthorised sitting penalties.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

State legislative membership depends on eligibility at entry and continuing qualification afterward.

MUST-WRITE KEYWORDS

- **Article 173**
- **Article 188**
- **Article 190**
- **Article 191**
- **Article 192**

How to use them: Frame the answer through Article 173; define Article 188, connect Article 190 with Article 191 to explain the mechanism, and use Article 192 for the decisive comparison or qualification.

Visual 10 - Entry requirements

Requirement	Assembly	Council
Citizenship	Indian	Indian
Minimum age	25	30
Oath/affirmation	Required before sitting	Required before sitting
Other qualifications	Parliamentary law	Parliamentary law

- [FACT] Article 173 contains citizenship, oath and age requirements.
- [FACT] Article 188 requires oath or affirmation before the Governor or a person appointed by the Governor.
- [FACT] Sitting or voting without qualification/oath may attract the Article 193 penalty.

Visual 11 - Article 191 disqualifications

Office of profit under Union/State
Unsound mind declared by competent court
Undischarged insolvent
Not citizen / foreign allegiance
Disqualified by parliamentary law
Tenth Schedule defection

- [FACT] Article 191 supplies constitutional grounds; the Representation of the People Act adds statutory grounds.
- [FACT] Under Article 192, a non-defection question of member disqualification is decided by the Governor after obtaining and acting according to the Election Commission's opinion.
- [FACT] Tenth Schedule disputes are decided by the Speaker or Chairman, subject to judicial review.
- [LIMIT] Do not send a Tenth Schedule question to the Governor under Article 192.
- [FACT] Article 190 governs vacation of seats, including double membership, resignation and absence for sixty days without House permission, subject to the exclusions stated in the provision.
- [FACT] A resignation does not create a vacancy until the Speaker or Chairman accepts it after being satisfied that it is voluntary and genuine.

STATE-LEGISLATURE ANSWER UNIT

Claim: Membership validity depends on distinct qualification, oath, vacancy and disqualification rules.

Named evidence: Articles 173, 188 and 190-193, the Representation of the People Acts and the Tenth Schedule.

Analysis: Separate forums prevent the Governor-EC route from swallowing the presiding officer's defection jurisdiction.

Qualification: Article 192 concerns Article 191(1) questions after election; Tenth Schedule cases follow paragraph 6.

Evidence to deploy: Articles 173, 188 and 190-193, the Representation of the People Acts and the Tenth Schedule.

Prelims trap: Do not send a defection dispute to the Governor under Article 192.

Mains use: Map each defect to the correct provision and decision-maker.

Mini recap: Qualification, oath, vacancy and disqualification are separate constitutional stages.

CLOSING RECALL FLOW - QUALIFICATIONS, OATH AND DISQUALIFICATION

START / CONCEPT: Qualifications, oath and disqualification

|

v

EXACT TERMS: Article 173 · Article 188 · Article 190 · Article 191 · Article 192

|

v

MECHANISM / ARGUMENT: Qualification permits election, oath permits participation, and later vacancy or disqualification follows the correct constitutional decision route.

|

v

CONSEQUENCE / CONTRAST: The framework protects House legitimacy and electoral integrity.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: article 192 excludes Tenth Schedule disputes.

|

v

ANSWER-GRABBING FORMULATION: State legislative membership depends on eligibility at entry and continuing qualification afterward.

SESSION 7 - SESSIONS, PROROGATION AND DISSOLUTION

VISUAL FIRST - CONCEPT GATEWAY

Summon -> sitting -> adjourn -> prorogue; Assembly may dissolve

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Summoning starts a session, prorogation ends it and dissolution ends only the Assembly.

Technical definition: Article 174 limits the inter-session gap and distinguishes ministerially advised gubernatorial acts from House adjournment.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Sessions, prorogation and dissolution determine whether a sitting, session or the entire Assembly ends.

MUST-WRITE KEYWORDS

- Article 174
- summoning
- prorogation
- adjournment
- dissolution

How to use them: Frame the answer through Article 174; define summoning, connect prorogation with adjournment to explain the mechanism, and use dissolution for the decisive comparison or qualification.

Visual 12 - Article 174 controls

```
Governor summons House(s)
|
+-- not more than 6 months between sessions
|
+-- may prorogue House(s)
|
+-- may dissolve Assembly
```

- [FACT] The Governor summons each House from time to time.
- [FACT] Six months cannot intervene between the last sitting in one session and the first sitting in the next.
- [FACT] Prorogation ends a session; adjournment suspends a sitting; dissolution ends the Assembly's life.
- [FACT] A Legislative Council is never dissolved.
- [LIMIT] The Governor ordinarily acts on ministerial advice; Article 174 is not a general personal discretion.

Visual 13 - Terminology

Device	Authority	Effect
Adjournment	Presiding officer/House	Suspends sitting
Adjournment sine die	Presiding officer	Ends sittings without next date
Prorogation	Governor	Ends session
Dissolution	Governor constitutionally	Ends Assembly

STATE-LEGISLATURE ANSWER UNIT

Claim: Article 174 regulates constitutional session spacing, not a fixed annual session count.

Named evidence: Article 174 empowers summoning and prorogation and permits Assembly dissolution; no more than six months may intervene between the specified sittings.

Analysis: The ceiling prevents indefinite legislative dormancy while leaving calendars to constitutional government and House practice.

Qualification: Budget, monsoon and winter sessions are conventions; the Constitution does not prescribe three sessions or minimum sitting days.

Evidence to deploy: Article 174 empowers summoning and prorogation and permits Assembly dissolution; no more than six months may intervene between the specified sittings.

Prelims trap: Do not convert the six-month gap rule into a twice-a-year or fixed-session formula.

Mains use: Distinguish constitutional time ceiling from local calendars and adjournment practice.

Mini recap: Article 174 sets a maximum inter-session gap, not a national session template.

CLOSING RECALL FLOW - SESSIONS, PROROGATION AND DISSOLUTION

START / CONCEPT: Sessions, prorogation and dissolution

|

v

EXACT TERMS: Article 174 · summoning · prorogation · adjournment · dissolution

|

v

MECHANISM / ARGUMENT: The Governor summons and prorogues on advice; the presiding officer adjourns; dissolution triggers Assembly renewal.

|

v

CONSEQUENCE / CONTRAST: Correct sequencing supports accountability and prevents unconstitutional session gaps.

|

v

UPSC TRAP / ANSWER-USE: A Council is never dissolved, and Article 174 is not general Governor discretion.

|

v

ANSWER-GRABBING FORMULATION: Sessions, prorogation and dissolution determine whether a sitting, session or the entire Assembly ends.

SESSION 8 - GOVERNOR'S ADDRESS AND MESSAGES

VISUAL FIRST - CONCEPT GATEWAY

Article 175 option / Article 176 duty / Article 177 participation

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Governor may address or message Houses and must deliver the special address on specified occasions.

Technical definition: Articles 175-177 govern addresses, messages, the annual or post-election special address and participation rights of ministers and the Advocate General.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The Governor's address and messages connect the elected government's programme with legislative debate.

MUST-WRITE KEYWORDS

- Article 175
- Article 176
- special address
- Motion of Thanks
- Article 177

How to use them: Frame the answer through Article 175; define Article 176, connect special address with Motion of Thanks to explain the mechanism, and use Article 177 for the decisive comparison or qualification.

Visual 14 - Articles 175-176

Article 175

- address either House or both
- send messages on pending or other matters

Article 176 special address

- first session after each general election
- first session of each year
- followed by Motion of Thanks
- [FACT] The special address states the causes of summoning and outlines the government's programme.
- [ANALYSIS] Debate on the Motion of Thanks is a broad accountability occasion, not merely ceremonial response.

- [LIMIT] Defeat on an amendment or Motion of Thanks may be politically serious, but confidence consequences depend on context and House practice.

STATE-LEGISLATURE ANSWER UNIT

Claim: Governor communications and ministerial participation serve different constitutional functions.

Named evidence: Articles 175-177 distinguish address/messages, the special address, and participation by Ministers and the Advocate-General.

Analysis: The address communicates government policy; participation supports responsible government across Houses.

Qualification: A right to speak does not create a vote without House membership.

Evidence to deploy: Articles 175-177 distinguish address/messages, the special address, and participation by Ministers and the Advocate-General.

Prelims trap: Do not treat Article 175 and the mandatory Article 176 occasions as identical.

Mains use: Use the 175-177 sequence to explain executive-legislative communication.

Mini recap: Address, message and participation are related but legally distinct.

CLOSING RECALL FLOW - GOVERNOR'S ADDRESS AND MESSAGES

START / CONCEPT: Governor's address and messages

|

v

EXACT TERMS: Article 175 · Article 176 · special address · Motion of Thanks · Article 177

|

v

MECHANISM / ARGUMENT: The government frames the programme, the Governor formally addresses, and members debate through the Motion of Thanks.

|

v

CONSEQUENCE / CONTRAST: The process creates a broad accountability occasion.

|

v

UPSC TRAP / ANSWER-USE: Article 177 participants may speak but vote only if they are House members.

|

v

ANSWER-GRABBING FORMULATION: The Governor's address and messages connect the elected government's programme with legislative debate.

SESSION 9 - PRESIDING OFFICERS: OFFICES AND CONTINUITY

VISUAL FIRST - CONCEPT GATEWAY

Assembly chair: 178-181 / Council chair: 182-185 / support: 186-187

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Each House elects presiding and deputy presiding officers with constitutional removal safeguards.

Technical definition: Articles 178-185 govern election, vacancy, resignation, removal, acting arrangements and participation during removal motions.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Presiding officer continuity protects House functioning across vacancies and Assembly dissolution.

MUST-WRITE KEYWORDS

- Speaker
- Deputy Speaker
- Chairman
- Article 179
- continuity

How to use them: Frame the answer through Speaker; define Deputy Speaker, connect Chairman with Article 179 to explain the mechanism, and use continuity for the decisive comparison or qualification.

Visual 15 - Constitutional offices

House	Presiding officer	Deputy
Assembly	Speaker	Deputy Speaker
Council	Chairman	Deputy Chairman

- [FACT] Articles 178-181 govern Assembly officers; Articles 182-185 govern Council officers.
- [FACT] Each House chooses its presiding and deputy presiding officer from among its members.
- [FACT] An Assembly Speaker resigns to the Deputy Speaker; the Deputy Speaker resigns to the Speaker.
- [FACT] Removal requires a resolution passed by a majority of all then members after at least 14 days' notice.
- [FACT] The Speaker continues after dissolution until immediately before the first meeting of the next Assembly.
- [FACT] A presiding officer does not preside over a motion for their own removal but may participate and vote in the first instance.

Visual 16 - Speaker's core functions

ORDER AND PROCEDURE

- +++ interprets rules
- +++ recognises speakers
- +++ maintains discipline
- +++ decides admissibility

CONSTITUTIONAL FUNCTIONS

- +++ Money Bill certification
- +++ Tenth Schedule adjudication
- +++ casting vote when tied

STATE-LEGISLATURE ANSWER UNIT

Claim: Presiding offices combine continuity, House control and institutional administration.

Named evidence: Articles 178-187 establish election, vacancy, removal, acting arrangements, pay and separate secretarial staff.

Analysis: Continuity of the Assembly Speaker protects institutional transition after dissolution.

Qualification: Removal uses a majority of all the then members and fourteen days' notice; the officer does not preside over the motion.

Evidence to deploy: Articles 178-187 establish election, vacancy, removal, acting arrangements, pay and separate secretarial staff.

Prelims trap: Do not say the Speaker's office ends immediately on dissolution.

Mains use: Pair office safeguards with secretariat autonomy when discussing legislative independence.

Mini recap: Presiding officers are constitutional offices supported by a House secretariat.

CLOSING RECALL FLOW - PRESIDING OFFICERS: OFFICES AND CONTINUITY

START / CONCEPT: Presiding officers: offices and continuity
|
v
EXACT TERMS: Speaker · Deputy Speaker · Chairman · Article 179 · continuity
|
v
MECHANISM / ARGUMENT: The House elects its chair, substitutes act during vacancy, and removal requires notice plus a majority of all then members.
|
v
CONSEQUENCE / CONTRAST: Stable offices support orderly and independent procedure.
|
v
UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: the Assembly Speaker continues only until immediately before the next Assembly's first meeting.
|
v
ANSWER-GRABBING FORMULATION: Presiding officer continuity protects House functioning across vacancies and Assembly dissolution.

SESSION 10 - IMPARTIALITY AND THE SPEAKER PROBLEM

VISUAL FIRST - CONCEPT GATEWAY

Party officeholder -> procedural judge -> neutrality risk

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Speaker powers over procedure, Money Bills and defection create a recurring neutrality conflict.

Technical definition: Kihoto, Keisham, Subhash Desai and Padi Kaushik Reddy bound tribunal-like defection authority through review and timely decision duties.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Speaker impartiality is strained when a party member controls proceedings that can determine government survival.

MUST-WRITE KEYWORDS

- Speaker
- impartiality
- Tenth Schedule
- Keisham
- Padi Kaushik Reddy

How to use them: Frame the answer through Speaker; define impartiality, connect Tenth Schedule with Keisham to explain the mechanism, and use Padi Kaushik Reddy for the decisive comparison or qualification.

Visual 17 - Institutional tension

Speaker remains party member
 +
 controls House agenda and recognition
 +
 decides defection petitions
 =
 risk of partisan delay or selective urgency

- [FACT] The Tenth Schedule assigns defection decisions to the Speaker/Chairman.
- [FACT] *Kihoto Hollohan (1992)* treats the presiding officer as a tribunal subject to judicial review.
- [FACT] *Keisham Meghachandra Singh (2020)* stated that petitions should ordinarily be decided within a reasonable period of about three months and urged Parliament to consider an independent tribunal.
- [CURRENT] *Padi Kaushik Reddy v. State of Telangana (2025)* treated timely Speaker adjudication as judicially enforceable and directed completion of the specified Telangana petitions within three months.
- [FACT] *Subhash Desai (2023)* holds that the whip and leader recognised for Tenth Schedule purposes must be appointed by the political party, not merely a legislature-party faction.
- [LIMIT] The independent tribunal and statutory deadline are proposals, not enacted law.
- [ANALYSIS] Neutrality cannot rest only on personal virtue where office incentives are partisan.

STATE-LEGISLATURE ANSWER UNIT

Claim: Speaker neutrality is strained where decisive procedural and defection powers meet continuing party affiliation.

Named evidence: Articles 181, 189 and 199; Tenth Schedule paragraph 6; *Kihoto Hollohan (1992)*, *Keisham Meghachandra (2020)* and *Subhash Desai (2023)*.

Analysis: Agenda control, Money Bill certification and defection timing can alter government survival, so reasoned and timely decisions are legitimacy safeguards.

Qualification: The proposed independent tribunal and an ordinary three-month norm are not constitutional amendments or universal statutory deadlines.

Evidence to deploy: Articles 181, 189 and 199; Tenth Schedule paragraph 6; *Kihoto Hollohan (1992)*, *Keisham Meghachandra (2020)* and *Subhash Desai (2023)*.

Prelims trap: Do not present *Keisham's* ordinarily three-month standard as an inflexible constitutional clock.

Mains use: Diagnose the conflict of incentives before proposing tribunal or convention-based reform.

Mini recap: Neutrality requires institutional checks, not only personal restraint.

CLOSING RECALL FLOW - IMPARTIALITY AND THE SPEAKER PROBLEM

START / CONCEPT: Impartiality and the Speaker problem

|
v

EXACT TERMS: Speaker • impartiality • Tenth Schedule • Keisham • Padi Kaushik Reddy

|
v

MECHANISM / ARGUMENT: Agenda and defection powers affect confidence arithmetic; reasoned decisions and judicial directions check strategic delay.

|
v

CONSEQUENCE / CONTRAST: Neutral procedure improves legitimacy, while delay can reward unconstitutional defection.

|
v

UPSC TRAP / ANSWER-USE: The independent tribunal remains a proposal, but timely adjudication is judicially enforceable.

|
v

ANSWER-GRABBING FORMULATION: Speaker impartiality is strained when a party member controls proceedings that can determine government survival.

SESSION 11 - QUORUM, VOTING AND VACANCIES

VISUAL FIRST - CONCEPT GATEWAY

Majority present and voting -> casting vote; quorum -> adjourn/suspend

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: State Houses decide by present-and-voting majority and may act despite vacancies, subject to quorum.

Technical definition: Article 189 gives the presiding officer a casting vote and supplies a default quorum alterable by State law.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Voting rules distinguish ordinary majority, tie-breaking authority and the minimum attendance needed for business.

MUST-WRITE KEYWORDS

- Article 189
- quorum
- casting vote
- vacancies
- present and voting

How to use them: Frame the answer through Article 189; define quorum, connect casting vote with vacancies to explain the mechanism, and use present and voting for the decisive comparison or qualification.

Visual 18 - Article 189

Rule	State House position
Ordinary decision	Majority of members present and voting
Presiding officer	No first vote; casting vote on equality
Quorum	Until the State Legislature otherwise provides by law: 10 members or one-tenth, whichever is greater
Vacancy	House may act despite vacancies, subject to constitutional limits

UPSC trap: Article 189 supplies **10 or one-tenth, whichever is greater** as the default **until the State Legislature otherwise provides by law**.

- [FACT] If quorum is absent, the presiding officer must adjourn or suspend the meeting until quorum exists.
- [ANALYSIS] Vacancies do not automatically paralyse a House, but disputed majorities must be tested against the effective constitutional membership and valid votes.

STATE-LEGISLATURE ANSWER UNIT

Claim: Article 189 allows Houses to act despite vacancies while requiring quorum and majority decision.

Named evidence: Article 189 provides present-and-voting decisions, a casting vote on equality, validity despite vacancies and the default quorum.

Analysis: These rules preserve continuity without allowing a numerically empty House to transact business.

Qualification: The default quorum is ten or one-tenth, whichever is greater, until State law provides otherwise.

Evidence to deploy: Article 189 provides present-and-voting decisions, a casting vote on equality, validity despite vacancies and the default quorum.

Prelims trap: Do not state one-tenth alone or assume the constitutional default is unalterable.

Mains use: Use the vacancies-quorum contrast to show continuity with minimum participation.

Mini recap: Vacancies do not invalidate proceedings, but lack of quorum stops them.

CLOSING RECALL FLOW - QUORUM, VOTING AND VACANCIES

START / CONCEPT: Quorum, voting and vacancies

|

v

EXACT TERMS: Article 189 · quorum · casting vote · vacancies · present and voting

|

v

MECHANISM / ARGUMENT: Valid members vote; equality activates the casting vote; absent quorum requires adjournment or suspension.

|

v

CONSEQUENCE / CONTRAST: The rules let Houses function despite vacancies without permitting business below quorum.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: ten or one-tenth is the constitutional default until State law provides otherwise.

|

v

ANSWER-GRABBING FORMULATION: Voting rules distinguish ordinary majority, tie-breaking authority and the minimum attendance needed for business.

SESSION 12 - PRIVILEGES AND FREEDOM OF SPEECH

VISUAL FIRST - CONCEPT GATEWAY

Speech/vote immunity -> legislative function -> substantive review survives

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Legislative privilege protects deliberation, not bribery or unrelated misconduct.

Technical definition: Article 194 immunity is function-linked and remains subject to Sita Soren (2024), Amarinder Singh and Raja Ram Pal (2007) constitutional review controls.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Privileges secure independent speech and voting while remaining bounded by constitutional purpose.

MUST-WRITE KEYWORDS

- Article 194
- privilege
- Sita Soren (2024)
- Amarinder Singh
- Raja Ram Pal (2007)

How to use them: Frame the answer through Article 194; define privilege, connect Sita Soren (2024) with Amarinder Singh to explain the mechanism, and use Raja Ram Pal (2007) for the decisive comparison or qualification.

Visual 19 - Article 194 shield

Freedom of speech in legislature

- |
- +-- subject to Constitution and House rules
- |
- +-- immunity for vote or speech in House/committee
- |
- +-- authorised publication immunity

- [FACT] Article 194 protects members from court proceedings for speech or vote in the House or committee.
- [FACT] Privilege belongs to members and the House; it is not a general immunity for conduct outside legislative functions.
- [FACT] *Sita Soren (2024) v. Union of India (2024)* holds that bribery is not protected merely because it relates to a legislative vote or speech; the seven-judge Bench overruled the contrary majority rule in *P.V. Narasimha Rao*.
- [FACT] *Amarinder Singh v. Special Committee, Punjab Vidhan Sabha (2010)* rejects use of privilege as a general punitive jurisdiction over past executive conduct lacking a nexus with House functions.
- [FACT] *Raja Ram Pal (2007)* confirms that privilege and expulsion remain reviewable for substantive illegality, unconstitutionality, mala fides and jurisdictional error.
- [LIMIT] Many privileges remain uncoded; Article 194 does not freeze an unlimited historical catalogue or place House action above the Constitution.
- [FACT] Article 211 bars discussion of the conduct of Supreme Court or High Court judges in discharge of duties.
- [LIMIT] The Governor is a component of the legislature but not a House member and does not acquire Article 194 member privilege.
- [ANALYSIS] Privilege protects deliberative independence, not corruption or substantive constitutional illegality.

STATE-LEGISLATURE ANSWER UNIT

Claim: Article 194 protects legislative functioning, not corruption or every private act of a legislator.

Named evidence: Article 194; Special Reference No. 1 of 1964 (Keshav Singh); *Raja Ram Pal (2007)*; *Amarinder Singh (2010)*; *Sita Soren (2024)*.

Analysis: Functional privilege preserves deliberation, while judicial review prevents privilege from becoming an enclave above the Constitution.

Qualification: Courts respect internal procedure but may examine jurisdiction, mala fides, constitutional violation and bribery.

Evidence to deploy: Article 194; Special Reference No. 1 of 1964 (Keshav Singh); *Raja Ram Pal (2007)*; *Amarinder Singh (2010)*; *Sita Soren (2024)*.

Prelims trap: Do not read speech-and-vote immunity as immunity for a bribe connected with a vote.

Mains use: Frame privilege as institutional necessity bounded by constitutional supremacy.

Mini recap: Privilege protects the House's work; it does not legalise substantive illegality.

CLOSING RECALL FLOW - PRIVILEGES AND FREEDOM OF SPEECH

START / CONCEPT: Privileges and freedom of speech

|

v

EXACT TERMS: Article 194 · privilege · Sita Soren (2024) · Amarinder Singh · Raja Ram Pal (2007)

|

v

MECHANISM / ARGUMENT: Speech, vote and authorised publication receive protection; corruption or unrelated punitive action falls outside functional necessity.

|

v

CONSEQUENCE / CONTRAST: The balance preserves legislative independence without creating criminal impunity.

|

v

UPSC TRAP / ANSWER-USE: The Governor is not a member, and uncodified privilege is not unlimited power.

|

v

ANSWER-GRABBING FORMULATION: Privileges secure independent speech and voting while remaining bounded by constitutional purpose.

SESSION 13 - ORDINARY BILLS IN A UNICAMERAL STATE

VISUAL FIRST - CONCEPT GATEWAY

Either House -> passage -> Governor: unicameral route ends after Assembly

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A unicameral ordinary Bill moves through the Assembly before the Article 200 assent gateway.

Technical definition: Articles 196 and 200 govern introduction, passage, lapse, prorogation and gubernatorial options.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Unicameral procedure concentrates deliberation in one elected House but still requires constitutional assent action.

MUST-WRITE KEYWORDS

- Article 196
- ordinary Bill
- unicameral
- Assembly
- Article 200

How to use them: Frame the answer through Article 196; define ordinary Bill, connect unicameral with Assembly to explain the mechanism, and use Article 200 for the decisive comparison or qualification.

Visual 20 - Unicameral route

Introduction in Assembly

|

readings / debate / committee / vote

|

passed by Assembly

|

presented to Governor under Article 200

|

assent / return / withhold / reserve

- [FACT] Subject to special rules, an ordinary Bill may be introduced by a minister or private member.
- [FACT] A Bill pending in the Assembly lapses on dissolution unless constitutional doctrine provides otherwise.
- [FACT] A Bill passed by the Assembly but pending with the Council ordinarily lapses on Assembly dissolution.

- [FACT] Prorogation does not lapse a Bill.
- [FACT] A Bill originating in and still pending before the Council does not lapse merely because the Assembly is dissolved.
- [LIMIT] Bill-lapse questions are status-sensitive; always identify the House and stage.

STATE-LEGISLATURE ANSWER UNIT

Claim: Article 196 supplies the ordinary Bill baseline and lapse rules.

Named evidence: Article 196 permits ordinary introduction in either House of a bicameral State and states that prorogation does not lapse a Bill.

Analysis: Legislative stage, not merely Bill label, determines survival on Assembly dissolution.

Qualification: A Council-originated Bill still requires Assembly passage; rejection by the Assembly ends it.

Evidence to deploy: Article 196 permits ordinary introduction in either House of a bicameral State and states that prorogation does not lapse a Bill.

Prelims trap: Do not say every pending Bill lapses on dissolution.

Mains use: Use Article 196 before applying the special Council restriction in Article 197.

Mini recap: Ordinary Bills follow Article 196; dissolution consequences depend on location and stage.

CLOSING RECALL FLOW - ORDINARY BILLS IN A UNICAMERAL STATE

START / CONCEPT: Ordinary Bills in a unicameral State

|

v

EXACT TERMS: Article 196 · ordinary Bill · unicameral · Assembly · Article 200

|

v

MECHANISM / ARGUMENT: Introduction leads through readings, committee scrutiny and voting before presentation to the Governor.

|

v

CONSEQUENCE / CONTRAST: The route is faster but places greater weight on committees and opposition scrutiny.

|

v

UPSC TRAP / ANSWER-USE: Prorogation does not lapse Bills; Assembly dissolution can.

|

v

ANSWER-GRABBING FORMULATION: Unicameral procedure concentrates deliberation in one elected House but still requires constitutional assent action.

SESSION 14 - ORDINARY BILLS IN A BICAMERAL STATE

VISUAL FIRST - CONCEPT GATEWAY

Council first delay 3 months -> Assembly repasses -> Council delay 1 month -> Assembly text prevails

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A Council may delay an Assembly Bill but cannot defeat the Assembly's final preference.

Technical definition: Article 197 permits a three-month first delay and one-month second delay without any State joint sitting.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Bicameral ordinary legislation provides reconsideration without a co-equal Council veto.

MUST-WRITE KEYWORDS

- **Article 197**
- **ordinary Bill**
- **three months**
- **one month**
- **no joint sitting**

How to use them: Frame the answer through Article 197; define ordinary Bill, connect three months with one month to explain the mechanism, and use no joint sitting for the decisive comparison or qualification.

Visual 21 - Article 197: maximum Council delay

Assembly passes Bill
|
Council rejects / delays / amends
|
up to 3 months
|
Assembly passes again
|
Council rejects / delays / amends
|
up to 1 month
|
Bill deemed passed in Assembly form

- [FACT] The Council cannot permanently veto an ordinary Bill.
- [FACT] Total potential delay is approximately four months: three months plus one month.
- [FACT] There is no joint sitting of State Houses.
- [ANALYSIS] The Council is a suspensive or dilatory chamber, not a co-equal revising chamber.
- [LIMIT] Four months is the maximum constitutional delay across the two-stage route, not a single fixed holding period.
- [LIMIT] Article 197's Assembly-override route applies to an Assembly-passed Bill. If a Council-originated

Bill is rejected by the Assembly, it ends; the Council has no reciprocal override.

Visual 22 - Assembly versus Council on ordinary Bills

Feature	Assembly	Council
Initiation	Yes	Yes, except Money/financial restrictions
Final control	Yes	No
First-stage delay	Repasses	Up to 3 months
Second-stage delay	Prevails	Up to 1 month
Joint sitting	Not applicable	No joint sitting exists

STATE-LEGISLATURE ANSWER UNIT

Claim: Article 197 converts the Council into a suspensive, not absolute, chamber.

Named evidence: Article 197's three-month and one-month stages; Article 108 has no State counterpart.

Analysis: The delay enables reconsideration but preserves the directly elected Assembly's final choice.

Qualification: Article 197 does not rescue a Council-originated Bill rejected by the Assembly.

Evidence to deploy: Article 197's three-month and one-month stages; Article 108 has no State counterpart.

Prelims trap: Do not invent a State joint sitting.

Mains use: Use the 3+1 mechanism to prove Assembly primacy without calling the Council powerless.

Mini recap: The Council may revise and delay, but cannot defeat a determined Assembly.

CLOSING RECALL FLOW - ORDINARY BILLS IN A BICAMERAL STATE

START / CONCEPT: Ordinary Bills in a bicameral State

|

v

EXACT TERMS: Article 197 · ordinary Bill · three months · one month · no joint sitting

|

v

MECHANISM / ARGUMENT: The Assembly passes, the Council responds, the Assembly repasses, and the Council's second delay expires.

|

v

CONSEQUENCE / CONTRAST: Delay can expose flaws while preserving direct democratic primacy.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: a Council-originated Bill rejected by the Assembly ends.

|

v

ANSWER-GRABBING FORMULATION: Bicameral ordinary legislation provides reconsideration without a co-equal Council veto.

SESSION 15 - MONEY BILLS: ASSEMBLY MONOPOLY

VISUAL FIRST - CONCEPT GATEWAY

Assembly-only introduction -> Council recommendations for 14 days -> Assembly decides

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Money Bills originate and are finally controlled by the Assembly.

Technical definition: Articles 198-199 and 207 require Assembly introduction on recommendation, Speaker certification and only fourteen-day Council recommendations.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

State Money Bill procedure assigns the power of the purse to the confidence chamber.

MUST-WRITE KEYWORDS

- Article 198
- Article 199
- Money Bill
- fourteen days
- Speaker certificate

How to use them: Frame the answer through Article 198; define Article 199, connect Money Bill with fourteen days to explain the mechanism, and use Speaker certificate for the decisive comparison or qualification.

Visual 23 - Money Bill route

Governor's recommendation
 |
 introduction only in Assembly
 |
 Speaker certifies Money Bill
 |
 Council may recommend within 14 days
 |
 Assembly accepts or rejects recommendations
 |
 Governor

- [FACT] Article 199 defines a State Money Bill and makes the Speaker's certificate central.
- [FACT] A Money Bill cannot be introduced in the Council.
- [FACT] The Council must return it within 14 days with recommendations, which the Assembly may accept or reject.
- [FACT] If not returned within 14 days, it is deemed passed in the Assembly form.
- [FACT] A Money Bill cannot be returned by the Governor for reconsideration under Article 200.
- [ANALYSIS] The confidence chamber controls taxation, borrowing and the Consolidated Fund.

Visual 24 - Money Bill close options

Claim	Correct position
Council may reject	No
Council may amend	Only recommend
Council has 14 days	Yes
Speaker certifies	Yes
Joint sitting resolves dispute	No

STATE-LEGISLATURE ANSWER UNIT

Claim: Articles 198-199 reserve Money Bill control to the Assembly.

Named evidence: Article 198 procedure, Article 199 definition and final Speaker certificate.

Analysis: Financial primacy follows democratic responsibility: the House that can remove the ministry controls taxation and charged withdrawals.

Qualification: Speaker certification is constitutionally final in text, yet substantive constitutional review is not automatically excluded.

Evidence to deploy: Article 198 procedure, Article 199 definition and final Speaker certificate.

Prelims trap: Do not treat every Bill involving expenditure as a Money Bill.

Mains use: Separate Money Bills from Article 207(1) and 207(3) financial Bills.

Mini recap: Money Bill power is an Assembly monopoly with a fourteen-day Council advisory window.

CLOSING RECALL FLOW - MONEY BILLS: ASSEMBLY MONOPOLY

START / CONCEPT: Money Bills: Assembly monopoly
|
v
EXACT TERMS: Article 198 · Article 199 · Money Bill · fourteen days · Speaker certificate
|
v
MECHANISM / ARGUMENT: The Assembly introduces and passes; the Council recommends; the Assembly accepts or rejects before assent.
|
v
CONSEQUENCE / CONTRAST: Financial primacy aligns taxation and expenditure with the directly accountable House.
|
v
UPSC TRAP / ANSWER-USE: The Governor cannot return a Money Bill and no joint sitting exists.
|
v
ANSWER-GRABBING FORMULATION: State Money Bill procedure assigns the power of the purse to the confidence chamber.

SESSION 16 - GOVERNOR'S ASSENT UNDER ARTICLES 200-201

VISUAL FIRST - CONCEPT GATEWAY

Bill -> Article 200 choice -> possible Article 201 presidential route

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: State Bills face assent, return, withholding or reservation routes after legislative passage.

Technical definition: Articles 200-201 create distinct gubernatorial and presidential choices, mandatory High Court-protection reservation and a current reviewable-delay doctrine.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Assent is a constitutional checkpoint, not an indefinite pocket veto.

MUST-WRITE KEYWORDS

- Article 200
- Article 201
- assent
- reservation
- deemed assent

How to use them: Frame the answer through Article 200; define Article 201, connect assent with reservation to explain the mechanism, and use deemed assent for the decisive comparison or qualification.

Visual 25 - Four Article 200 routes

Bill presented to Governor

- |
- +-- assent
- +-- withhold assent
- +-- return non-Money Bill for reconsideration
- +-- reserve for President

- [FACT] A returned non-Money Bill, if repassed, is presented again and the constitutional text states that the Governor shall not withhold assent.
- [FACT] Reservation is mandatory where the Bill would so derogate from High Court powers as to endanger its constitutional position.
- [FACT] Under Article 201, the President may assent, withhold, or direct return of a non-Money Bill.
- [FACT] Repassage after presidentially directed return does not compel presidential assent.

- [CURRENT] The November 2025 Article 143 opinion rejects rigid court-written timelines and deemed assent, but prolonged unexplained inaction remains amenable to limited judicial review and a direction to decide.
- [LIMIT] A court may require constitutional action; it does not choose the substantive option for the Governor or President.

STATE-LEGISLATURE ANSWER UNIT

Claim: Assent is a constitutional decision point, not an indefinite pocket veto.

Named evidence: State of Punjab (2023), State of Tamil Nadu (8 April 2025) and the five-judge Article 143 opinion (20 November 2025, 2025 INSC 1333).

Analysis: The cases protect completed State lawmaking from paralysis while preserving the textual role of Governor and President.

Qualification: The advisory opinion rejects rigid court-made timelines, merits review before enactment and deemed assent, but permits limited mandamus for glaring prolonged unexplained inaction.

Evidence to deploy: State of Punjab (2023), State of Tamil Nadu (8 April 2025) and the five-judge Article 143 opinion (20 November 2025, 2025 INSC 1333).

Prelims trap: Do not say the Article 143 opinion appellate-overruled the Tamil Nadu inter partes judgment.

Mains use: State the three options and then reconcile Punjab, Tamil Nadu and the later advisory opinion.

Mini recap: No pocket veto; no deemed assent; limited judicial response to prolonged inaction.

CLOSING RECALL FLOW - GOVERNOR'S ASSENT UNDER ARTICLES 200-201

START / CONCEPT: Governor's assent under Articles 200-201

|

v

EXACT TERMS: Article 200 • Article 201 • assent • reservation • deemed assent

|

v

MECHANISM / ARGUMENT: Bill type and constitutional concern determine the route; reserved Bills move to the President under different repassage rules.

|

v

CONSEQUENCE / CONTRAST: The mechanism balances State lawmaking, constitutional scrutiny and Union oversight.

|

v

UPSC TRAP / ANSWER-USE: The advisory opinion rejected rigid timelines but did not technically overrule the earlier judgment.

|

v

ANSWER-GRABBING FORMULATION: Assent is a constitutional checkpoint, not an indefinite pocket veto.

SESSION 17 - ANNUAL FINANCIAL STATEMENT AND DEMANDS FOR GRANTS

VISUAL FIRST - CONCEPT GATEWAY

Article 202 statement -> Article 203 grants -> Article 204 appropriation

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The State budget separates charged expenditure from Assembly-voted demands and legal appropriation.

Technical definition: Articles 202-204 govern the annual financial statement, charged items, demands for grants and withdrawal authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The annual financial statement and demands for grants convert executive proposals into Assembly-controlled spending authority.

MUST-WRITE KEYWORDS

- Article 202
- Article 203
- Article 204
- demands for grants
- appropriation

How to use them: Frame the answer through Article 202; define Article 203, connect Article 204 with demands for grants to explain the mechanism, and use appropriation for the decisive comparison or qualification.

Visual 26 - State budget chain

Annual Financial Statement: Article 202
|
charged expenditure identified
|
demands for grants voted by Assembly: Article 203
|
Appropriation Bill: Article 204
|
Finance/financial legislation: Article 207

- [FACT] The Governor causes the annual financial statement to be laid before the House or Houses.
- [FACT] Charged expenditure is discussed but not voted.
- [FACT] Demands for grants are submitted only to the Assembly and require the Governor's recommendation.
- [FACT] No money may be withdrawn from the Consolidated Fund of the State except under appropriation made by law.
- [FACT] The Council cannot vote demands for grants.

Visual 27 - Grants toolkit

Device	Purpose
Supplementary grant	Original amount insufficient
Additional grant	New service not contemplated
Excess grant	Expenditure exceeded authorised amount
Vote on account	Short-term expenditure pending full budget
Vote of credit	Unexpected demand of indefinite character
Exceptional grant	Special purpose outside current service

STATE-LEGISLATURE ANSWER UNIT

Claim: State financial control separates presentation, voting and legal withdrawal authority.

Named evidence: Articles 202-204 distinguish charged expenditure, voted demands and appropriation.

Analysis: Assembly voting converts executive estimates into democratic authorisation of expenditure.

Qualification: Charged expenditure may be discussed but is not submitted to vote.

Evidence to deploy: Articles 202-204 distinguish charged expenditure, voted demands and appropriation.

Prelims trap: Do not say the Council votes demands for grants.

Mains use: Use the three-stage chain to explain the power of the purse.

Mini recap: Budget presentation, grant voting and appropriation are distinct acts.

CLOSING RECALL FLOW - ANNUAL FINANCIAL STATEMENT AND DEMANDS FOR GRANTS

START / CONCEPT: Annual financial statement and demands for grants

|

v

EXACT TERMS: Article 202 · Article 203 · Article 204 · demands for grants · appropriation

|

v

MECHANISM / ARGUMENT: The Governor causes laying, the Assembly votes grants, and appropriation authorises Consolidated Fund withdrawal.

|

v

CONSEQUENCE / CONTRAST: Financial scrutiny links taxation and spending to representative accountability.

|

v

UPSC TRAP / ANSWER-USE: Charged expenditure is discussed but not voted, and the Council does not vote grants.

|

v

ANSWER-GRABBING FORMULATION: The annual financial statement and demands for grants convert executive proposals into Assembly-controlled spending authority.

SESSION 18 - FINANCIAL BILLS AND RECOMMENDATION

VISUAL FIRST - CONCEPT GATEWAY

205 supplementary/excess -> 206 exceptional votes -> 207 financial-Bill controls

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 207 distinguishes Bills containing Money Bill matters from other expenditure-involving Bills.

Technical definition: Clause 1 restricts listed financial-matter Bills to recommended Assembly introduction; clause 3 requires recommendation before either House passes expenditure Bills.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Financial Bill classification decides origin, recommendation stage and Council power.

MUST-WRITE KEYWORDS

- Article 207
- financial Bill
- Governor recommendation
- Consolidated Fund
- Assembly

How to use them: Frame the answer through Article 207; define financial Bill, connect Governor recommendation with Consolidated Fund to explain the mechanism, and use Assembly for the decisive comparison or qualification.

Visual 28 - Money Bill and the two Article 207 controls

Question	Money Bill / Article 207(1) Bill	Article 207(3) expenditure Bill
Content	Money Bill contains only Article 199 matters; a wider 207(1) Bill may add other matters	Any Bill that would involve expenditure from the Consolidated Fund
Introduction	Assembly only	Either House
Governor recommendation	Before introduction/moving amendment	Before either House passes it; recommendation for consideration
Council power	Money Bill: recommendations only in 14 days; wider 207(1) Bill: ordinary-Bill route	Ordinary-Bill route
Speaker certificate	Only if the Article 199 Money Bill test is met	No automatic Money Bill certificate

- [LIMIT] Do not label every Bill involving expenditure a Money Bill.
- [ANALYSIS] Classification matters because it determines the Council's power and the available legislative route.

STATE-LEGISLATURE ANSWER UNIT

Claim: Articles 205-207 handle altered expenditure needs and Bills with financial consequences.

Named evidence: Articles 205, 206 and 207(1)/(3).

Analysis: The scheme gives flexibility for unforeseen expenditure without abandoning recommendation and appropriation controls.

Qualification: A Bill involving Consolidated Fund expenditure under Article 207(3) is not automatically a Money Bill and may originate in either House.

Evidence to deploy: Articles 205, 206 and 207(1)/(3).

Prelims trap: Do not collapse Financial Bill-I, Financial Bill-II and Money Bill into one category.

Mains use: Classify the Bill first; then state introduction, recommendation and Council powers.

Mini recap: Financial procedure varies by constitutional category, not by the everyday word 'money'.

CLOSING RECALL FLOW - FINANCIAL BILLS AND RECOMMENDATION

START / CONCEPT: Financial Bills and recommendation

|

v

EXACT TERMS: Article 207 • financial Bill • Governor recommendation • Consolidated Fund • Assembly

|

v

MECHANISM / ARGUMENT: Classify content first, then apply the correct introduction or consideration recommendation and ordinary or Money Bill route.

|

v

CONSEQUENCE / CONTRAST: Accurate classification protects both executive financial initiative and bicameral scrutiny.

|

v

UPSC TRAP / ANSWER-USE: A Bill involving expenditure is not automatically a Money Bill.

|

v

ANSWER-GRABBING FORMULATION: Financial Bill classification decides origin, recommendation stage and Council power.

SESSION 19 - LEGISLATIVE ACCOUNTABILITY DEVICES

VISUAL FIRST - CONCEPT GATEWAY

Information -> debate -> censure -> Assembly confidence

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Questions, discussions, motions and confidence procedures make ministers explain and defend policy.

Technical definition: House rules operationalise information devices, censure tools and the Assembly's Article 164 confidence control.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Legislative accountability ranges from daily information to government survival.

MUST-WRITE KEYWORDS

- Question Hour
- no-confidence
- censure
- cut motion
- accountability

How to use them: Frame the answer through Question Hour; define no-confidence, connect censure with cut motion to explain the mechanism, and use accountability for the decisive comparison or qualification.

Visual 29 - Accountability ladder

Question Hour

-> information

Zero Hour / special mention

-> urgency

Calling attention / discussion

-> ministerial explanation

Adjournment-type devices

-> censure and disruption of normal business

No-confidence motion

-> government survival

Committees

-> detailed scrutiny

- [FACT] Collective responsibility makes Assembly confidence decisive.
- [FACT] A Legislative Council may question and debate ministers but cannot remove the ministry through no-confidence.
- [ANALYSIS] Daily accountability is broader than government survival: questions, discussions, budget control and committees expose policy to reasons.
- [LIMIT] Exact device names and admissibility conditions vary under State House rules.

STATE-LEGISLATURE ANSWER UNIT

Claim: Questions and motions translate legislative presence into executive accountability.

Named evidence: Article 164(2), Article 208 and the relevant State House's rules, directions and conventions.

Analysis: Questions expose information; discussions test reasons; censure targets policy; no-confidence determines ministry survival.

Qualification: Names, notice periods and admissibility rules vary by House; Zero Hour is practice, not constitutional text.

Evidence to deploy: Article 164(2), Article 208 and the relevant State House's rules, directions and conventions.

Prelims trap: Do not universalise Lok Sabha rules as automatic State rules.

Mains use: Identify whether the device informs, debates, censures or tests confidence.

Mini recap: House devices matter only when rules, time and ministerial answers make them usable.

CLOSING RECALL FLOW - LEGISLATIVE ACCOUNTABILITY DEVICES

START / CONCEPT: Legislative accountability devices

|

v

EXACT TERMS: Question Hour · no-confidence · censure · cut motion · accountability

|

v

MECHANISM / ARGUMENT: Members seek information, force debate, test expenditure and, in the Assembly, withdraw confidence.

|

v

CONSEQUENCE / CONTRAST: Repeated scrutiny can correct policy before elections.

|

v

UPSC TRAP / ANSWER-USE: Device names vary by State rules, and the Council cannot remove the ministry.

|

v

ANSWER-GRABBING FORMULATION: Legislative accountability ranges from daily information to government survival.

SESSION 20 - COMMITTEES AND SCRUTINY

VISUAL FIRST - CONCEPT GATEWAY

House -> committees -> evidence/audit -> report -> executive follow-up

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Committees examine finance, departments and Bills beyond the time limits of the full House.

Technical definition: PAC, Estimates, Public Undertakings and State-specific subject committees provide evidence-based detailed scrutiny.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Committee work turns broad plenary accountability into clause-level and expenditure review.

MUST-WRITE KEYWORDS

- Public Accounts Committee
- Estimates Committee
- Public Undertakings Committee
- scrutiny

How to use them: Frame the answer through Public Accounts Committee; define Estimates Committee, connect Public Undertakings Committee with scrutiny to explain the mechanism, and close with the decisive comparison or qualification.

Visual 30 - Why committees matter

Full House constraints

- limited time
- political speeches
- complex Bills

|
v

Committee advantage

- smaller forum
- evidence and departments
- clause-level scrutiny
- cross-party work

- [FACT] Financial committees include the Public Accounts Committee, Estimates Committee and Committee on Public Undertakings.
- [ANALYSIS] Strong subject committees can compensate for short sessions and rushed plenary passage.
- [LIMIT] Committee systems differ across States; do not assume every State mirrors Parliament's department-related standing committee structure.

STATE-LEGISLATURE ANSWER UNIT

Claim: Committees create detailed scrutiny that plenary time cannot supply.

Named evidence: Article 208 rules; PAC, Estimates, Public Undertakings, Privileges, Ethics, Petitions, Subordinate Legislation and subject committees under local House practice.

Analysis: Small-group evidence and document review can improve financial and legislative accountability.

Qualification: Committee names, composition, tenure and referral practice vary among States; parliamentary numbers cannot be copied automatically.

Evidence to deploy: Article 208 rules; PAC, Estimates, Public Undertakings, Privileges, Ethics, Petitions, Subordinate Legislation and subject committees under local House practice.

Prelims trap: Do not invent a uniform State DRSC system or fixed committee membership.

Mains use: Name the committee's function and then qualify it by the relevant House's rules.

Mini recap: Committees deepen scrutiny, but design and follow-up are State-specific.

CLOSING RECALL FLOW - COMMITTEES AND SCRUTINY

START / CONCEPT: Committees and scrutiny

|
v

EXACT TERMS: Public Accounts Committee • Estimates Committee • Public Undertakings Committee •
scrutiny

|
v

MECHANISM / ARGUMENT: Small cross-party forums examine records, hear departments and track
implementation or audit findings.

|
v

CONSEQUENCE / CONTRAST: Effective committees improve legislative quality and executive compliance.

|
v

UPSC TRAP / ANSWER-USE: Do not assume every State copies Parliament's department-related committee
system.

|
v

ANSWER-GRABBING FORMULATION: Committee work turns broad plenary accountability into clause-level
and expenditure review.

SESSION 21 - ANTI-DEFECTION INSIDE THE STATE HOUSE

VISUAL FIRST - CONCEPT GATEWAY

Defection ground -> Speaker/Chairman -> reasoned decision -> judicial review

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Tenth Schedule disqualifies specified party switching and whip violations through a reviewable presiding-officer process.

Technical definition: Kihoto, Ravi Naik, Rajendra Singh Rana, Keisham, Subhash Desai and Padi Kaushik Reddy define grounds, inference, review and delay control.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Anti-defection law protects party mandates but concentrates survival-sensitive adjudication in the Speaker.

MUST-WRITE KEYWORDS

- Tenth Schedule
- Kihoto Hollohan (1992)
- Ravi Naik
- Keisham
- Subhash Desai

How to use them: Frame the answer through Tenth Schedule; define Kihoto Hollohan (1992), connect Ravi Naik with Keisham to explain the mechanism, and use Subhash Desai for the decisive comparison or qualification.

Visual 31 - Tenth Schedule basics

Party member

- voluntarily gives up membership
- defies whip without permission/condonation

Independent member

- joins any party

Nominated member

- joins party after six months

Exception

- merger supported by at least 2/3
- [FACT] The 52nd Amendment inserted the Tenth Schedule; the 91st Amendment removed the split exception.
- [FACT] Only the two-thirds merger defence survives.
- [FACT] Speaker/Chairman decides, subject to judicial review under *Kihoto Hollohan (1992)*.
- [FACT] "Voluntarily giving up" may be inferred from conduct under *Ravi S. Naik*.
- [FACT] *Rajendra Singh Rana* confirms that Speaker inaction can be reviewed.
- [LIMIT] The approximately three-month norm from *Keisham* is not a statutory deadline.

STATE-LEGISLATURE ANSWER UNIT

Claim: The Tenth Schedule seeks stability but can transfer partisan conflict to the presiding officer.

Named evidence: 52nd Amendment (1985), Article 191(2) and Tenth Schedule; 91st Amendment (2003); Kihoto, Ravi Naik, Rajendra Singh Rana, Keisham, Subhash Desai and Padi Kaushik Reddy (2025).

Analysis: Whip and voluntary-membership rules deter opportunism, while delay can distort majority and representation.

Qualification: Nabam Rebia's Speaker-removal proposition was referred to a larger Bench in Subhash Desai and must not be stated as finally settled.

Evidence to deploy: 52nd Amendment (1985), Article 191(2) and Tenth Schedule; 91st Amendment (2003); Kihoto, Ravi Naik, Rajendra Singh Rana, Keisham, Subhash Desai and Padi Kaushik Reddy (2025).

Prelims trap: Do not treat every intra-party disagreement as voluntarily giving up membership.

Mains use: Use case chronology to separate review, inference, delay, party authority and the unresolved removal-notice issue.

Mini recap: Anti-defection stabilises parties but demands timely, reviewable and neutral adjudication.

CLOSING RECALL FLOW - ANTI-DEFECTION INSIDE THE STATE HOUSE

START / CONCEPT: Anti-defection inside the State House

|

v

EXACT TERMS: Tenth Schedule • Kihoto Hollohan (1992) • Ravi Naik • Keisham • Subhash Desai

|

v

MECHANISM / ARGUMENT: A petition alleges a ground, the Speaker conducts tribunal-like adjudication, and constitutional courts review recognised defects or compel timely action.

|

v

CONSEQUENCE / CONTRAST: The law checks opportunistic switching but can strengthen party control and Speaker incentives.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: only the two-thirds merger defence survives.

|

v

ANSWER-GRABBING FORMULATION: Anti-defection law protects party mandates but concentrates survival-sensitive adjudication in the Speaker.

SESSION 22 - LEGISLATIVE COUNCIL VERSUS RAJYA SABHA

VISUAL FIRST - CONCEPT GATEWAY

Rajya Sabha: federal co-legislator / Council: State-level suspensive chamber

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Both upper Houses are permanent, but the Council is optional and far weaker than Rajya Sabha.

Technical definition: Article 169 optionality and Article 197 subordination contrast with the Rajya Sabha's federal role and Articles 249 and 312 powers.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

A Legislative Council and the Rajya Sabha share continuity and Money-Bill limits but serve different constitutional purposes.

MUST-WRITE KEYWORDS

- Legislative Council
- Rajya Sabha
- Article 249
- Article 312
- federal role

How to use them: Frame the answer through Legislative Council; define Rajya Sabha, connect Article 249 with Article 312 to explain the mechanism, and use federal role for the decisive comparison or qualification.

Visual 32 - Side-by-side comparison

Dimension	Legislative Council	Rajya Sabha
Constitutional status	Optional	Mandatory Union House
Represents	Mixed local/functional/expert interests	States in Union federation
Creation/abolition	Article 169 route	Cannot be abolished by ordinary law
Ordinary Bills	Only delays up to about 4 months	Co-equal except joint-sitting route
Money Bills	Recommends for 14 days	Recommends for 14 days
Executive confidence	No	Union Council responsible only to Lok Sabha
Special powers	No Article 249/312 equivalent	Articles 249 and 312

- [ANALYSIS] Similar permanence and Money Bill weakness should not hide the Council's deeper inferiority on ordinary legislation and federal purpose.

STATE-LEGISLATURE ANSWER UNIT

Claim: A Legislative Council resembles the Rajya Sabha in continuity, not constitutional power.

Named evidence: Articles 197-199 versus Articles 108, 109, 249 and 312.

Analysis: The Rajya Sabha's federal representation and special powers justify stronger parity than a Council's occupational and local-body design.

Qualification: Neither second chamber is directly elected by the general electorate, but their functions and constitutional status differ.

Evidence to deploy: Articles 197-199 versus Articles 108, 109, 249 and 312.

Prelims trap: Do not call the Council a State Rajya Sabha in the sense of equal powers.

Mains use: Compare origin, representation, legislation, finance, confidence, federal powers and abolition.

Mini recap: Continuity is the similarity; federal role and legislative weight are the decisive differences.

CLOSING RECALL FLOW - LEGISLATIVE COUNCIL VERSUS RAJYA SABHA

START / CONCEPT: Legislative Council versus Rajya Sabha

|

v

EXACT TERMS: Legislative Council · Rajya Sabha · Article 249 · Article 312 · federal role

|

v

MECHANISM / ARGUMENT: Compare creation, representation, ordinary legislation, finance, confidence and special powers on matching axes.

|

v

CONSEQUENCE / CONTRAST: The contrast explains why Council legitimacy rests on scrutiny rather than federal bargaining.

|

v

UPSC TRAP / ANSWER-USE: A Council is not a State-level Rajya Sabha and has no equivalent special powers.

|

v

ANSWER-GRABBING FORMULATION: A Legislative Council and the Rajya Sabha share continuity and Money-Bill limits but serve different constitutional purposes.

SESSION 23 - LEGISLATIVE COUNCIL: CASE FOR AND AGAINST

VISUAL FIRST - CONCEPT GATEWAY

Second look and diversity <-> cost, patronage and duplication

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Council value depends on whether delay and mixed representation produce real scrutiny.

Technical definition: Articles 169, 171 and 197-199 frame the case for and against a Legislative Council around optionality, composition and weak power.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The Council is defensible as a scrutiny forum, not as a co-equal democratic mandate.

MUST-WRITE KEYWORDS

- **Legislative Council**
- **scrutiny**
- **representation**
- **patronage**
- **reform**

How to use them: Frame the answer through Legislative Council; define scrutiny, connect representation with patronage to explain the mechanism, and use reform for the decisive comparison or qualification.

Visual 33 - Retain, reform or abolish

Case for Council	Case against Council
second look at legislation	can only delay
institutional continuity	recurring expenditure
local-body and expert voices	indirect/patronage concerns
forum for experienced public figures	graduate/teacher categories may be dated
checks Assembly haste	may duplicate partisan balance

- [ANALYSIS] A Council's value is empirical and State-specific. A different majority and strong committees may create scrutiny; a mirror-image chamber may add little.
- [ANALYSIS] The best reform position is conditional: retain where it demonstrably improves scrutiny, reform composition and working, and abolish where it functions only as patronage.
- [LIMIT] "White elephant" is a critique, not a constitutional conclusion.

STATE-LEGISLATURE ANSWER UNIT

Claim: The case for a Council depends on whether delay becomes scrutiny rather than patronage.

Named evidence: Article 169 reversibility, Article 171 composition and Article 197 limited delay.

Analysis: A differently composed chamber may expose haste and preserve expertise, but weak powers and dated electorates may merely duplicate party politics.

Qualification: Utility varies by State, party configuration, committee capacity and quality of nominations.

Evidence to deploy: Article 169 reversibility, Article 171 composition and Article 197 limited delay.

Prelims trap: Do not answer retain-versus-abolish as an absolute national rule.

Mains use: Apply a State-specific test: independence, scrutiny output, representation and cost.

Mini recap: Retain and reform where scrutiny is real; abolition remains legitimate where duplication dominates.

CLOSING RECALL FLOW - LEGISLATIVE COUNCIL: CASE FOR AND AGAINST

START / CONCEPT: Legislative Council: case for and against

|

v

EXACT TERMS: Legislative Council · scrutiny · representation · patronage · reform

|

v

MECHANISM / ARGUMENT: A second chamber adds time and voices, but party duplication and weak committees can turn cost into ornament.

|

v

CONSEQUENCE / CONTRAST: State-specific performance should determine retention and reform choices.

|

v

UPSC TRAP / ANSWER-USE: White elephant is a criticism, not a constitutional classification.

|

v

ANSWER-GRABBING FORMULATION: The Council is defensible as a scrutiny forum, not as a co-equal democratic mandate.

SESSION 24 - STATE LEGISLATIVE PERFORMANCE AND THE SCRUTINY DEFICIT

VISUAL FIRST - CONCEPT GATEWAY

Fewer sittings / rushed passage / weak committees -> executive dominance

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Short sessions, rushed Bills and weak research can shift policy power from Houses to executives.

Technical definition: Articles 168-212 provide formal control, but institutional capacity determines whether questions, budgets and committees bite.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

State legislative decline weakens representative federalism even when State executive power remains strong.

MUST-WRITE KEYWORDS

- sitting days
- Bill scrutiny
- committees
- research support
- executive dominance

How to use them: Frame the answer through sitting days; define Bill scrutiny, connect committees with research support to explain the mechanism, and use executive dominance for the decisive comparison or qualification.

Visual 34 - Causal chain

Few sitting days
 + disruptions
 + weak committee referral
 + late Bill circulation
 |
 v
 compressed debate
 |
 v
 executive dominance
 |
 v
 lower legislative legitimacy

- [ANALYSIS] State legislatures often face short sessions, weak research support, rushed Bills and uneven committee systems.
- [ANALYSIS] The result is not merely fewer speeches; it is less evidence, less opposition input and weaker anticipation of implementation problems.
- [LIMIT] Sitting-day and referral rates change by State and year. Use verified figures only when a current source is available.

Visual 35 - Reform map

Problem	Targeted reform
Short sessions	minimum annual sitting calendar through rules/convention
Rushed Bills	mandatory prior publication except certified urgency
Weak committees	subject committees with evidence powers and tracked replies
Speaker partisanship	office convention or independent defection tribunal
Assent delay	public Bill tracker and reasoned constitutional action
Council legitimacy	modernise electorate categories and nomination transparency
Poor research	non-partisan legislative research service

STATE-LEGISLATURE ANSWER UNIT

Claim: Formal legislative powers produce accountability only when procedural time and capacity are available.

Named evidence: State House calendars, Article 208 rules, committee reports, budget scrutiny and ordinance laying records.

Analysis: Compressed deliberation reduces amendment, opposition and evidence opportunities, shifting initiative toward the executive.

Qualification: There is no single constitutional minimum of sitting days and State performance must be supported by dated House-specific evidence.

Evidence to deploy: State House calendars, Article 208 rules, committee reports, budget scrutiny and ordinance laying records.

Prelims trap: Do not invent a uniform annual sitting count.

Mains use: Diagnose the exact bottleneck before proposing calendars, referral rules or research support.

Mini recap: Capacity, time and follow-up determine whether constitutional powers become effective scrutiny.

CLOSING RECALL FLOW - STATE LEGISLATIVE PERFORMANCE AND THE SCRUTINY DEFICIT

START / CONCEPT: State legislative performance and the scrutiny deficit

|

v

EXACT TERMS: sitting days · Bill scrutiny · committees · research support · executive dominance

|

v

MECHANISM / ARGUMENT: Limited time and evidence compress debate, reduce amendments and weaken follow-up on spending and implementation.

|

v

CONSEQUENCE / CONTRAST: The result is lower accountability and greater cabinet or bureaucratic dominance.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: use sitting-day or referral numbers only when State- and year-specific sources are verified.

|

v

ANSWER-GRABBING FORMULATION: State legislative decline weakens representative federalism even when State executive power remains strong.

SESSION 25 - WOMEN'S RESERVATION, DELIMITATION AND STATE ASSEMBLIES

VISUAL FIRST - CONCEPT GATEWAY

106th Amendment -> Article 332A -> Article 334A census publication + delimitation -> operation

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Women's reservation awaits the constitutionally linked post-census delimitation sequence.

Technical definition: The 84th and 106th Amendments connect seat readjustment and Assembly reservation to publication of census figures and delimitation.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Representation reform is enacted constitutionally but not yet operational in current Assembly seats.

MUST-WRITE KEYWORDS

- 106th Amendment
- delimitation
- Census 2027
- women reservation

How to use them: Frame the answer through 106th Amendment; define delimitation, connect Census 2027 with women reservation to explain the mechanism, and close with the decisive comparison or qualification.

Visual 36 - Current constitutional sequence

106th Amendment

|

first census after commencement

|

publication of census figures

|

delimitation exercise

|

reservation activated in Assembly constituencies

- [FACT] The amendment provides one-third reservation in the Lok Sabha and State Legislative Assemblies, including within SC/ST-reserved seats.

- [FACT] Reservation is linked to post-census delimitation and is not self-executing merely because the amendment exists.
- [CURRENT] The 2026 attempt to alter this sequence and use the 2011 Census did not become law.
- [CURRENT] Census 2027 publication and later delimitation dates are not yet fixed.
- [LIMIT] Do not state that one-third of current Assembly seats are already reserved for women.
- [LIMIT] The provision does not extend to Legislative Councils.

STATE-LEGISLATURE ANSWER UNIT

Claim: Women's reservation changes Assembly representation but not Legislative Councils.

Named evidence: Constitution (106th Amendment) Act, 2023, sections 2-5; Article 332A and Article 334A; commencement notification S.O. 1922(E), 16 April 2026.

Analysis: The amendment links descriptive representation to a later census-and-delimitation implementation sequence.

Qualification: Commencement of the amendment is not the same as operation of reserved seats; Councils and Rajya Sabha remain outside the scheme.

Evidence to deploy: Constitution (106th Amendment) Act, 2023, sections 2-5; Article 332A and Article 334A; commencement notification S.O. 1922(E), 16 April 2026.

Prelims trap: Do not say reservation began automatically on commencement or merely because 2026 passed.

Mains use: Separate enactment, commencement, census publication, delimitation and electoral operation.

Mini recap: Article 332A creates the entitlement; Article 334A controls when it operates.

CLOSING RECALL FLOW - WOMEN'S RESERVATION, DELIMITATION AND STATE ASSEMBLIES

START / CONCEPT: Women's reservation, delimitation and State Assemblies

|

v

EXACT TERMS: 106th Amendment • delimitation • Census 2027 • women reservation

|

v

MECHANISM / ARGUMENT: Census reference and publication precede delimitation, which activates reservation and later rotation under the constitutional scheme.

|

v

CONSEQUENCE / CONTRAST: The change can reshape candidacy, boundaries and federal distribution.

|

v

UPSC TRAP / ANSWER-USE: Failed Bills did not alter Council exclusion or create a lawful seat projection.

|

v

ANSWER-GRABBING FORMULATION: Representation reform is enacted constitutionally but not yet operational in current Assembly seats.

SESSION 26 - ARTICLES 208-212: PROCEDURE, LANGUAGE AND JUDICIAL RESTRAINT

VISUAL FIRST - CONCEPT GATEWAY

House autonomy -> Article 212 irregularity shield -> substantive review remains

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: House procedure is autonomous against mere irregularity but remains subject to constitutional review.

Technical definition: Articles 208-212 cover rules, financial-business regulation, language, judicial-conduct discussion and the limited procedural-irregularity shield.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Legislative autonomy and judicial review coexist through the irregularity-versus-illegality distinction.

MUST-WRITE KEYWORDS

- Article 208
- Article 209
- Article 210
- Article 211
- Article 212

How to use them: Frame the answer through Article 208; define Article 209, connect Article 210 with Article 211 to explain the mechanism, and use Article 212 for the decisive comparison or qualification.

Visual 37 - Closing constitutional map

Article	Subject
208	Rules of procedure
209	Law regulating financial-business procedure
210	Language in legislature
211	Bar on discussion of judges' conduct
212	Courts not to question procedural irregularity

- [FACT] Article 212 protects proceedings from judicial inquiry merely on an alleged procedural irregularity.
- [LIMIT] It does not immunise substantive illegality, mala fides or constitutional violations.
- [ANALYSIS] Legislative autonomy and judicial review coexist: courts avoid managing internal procedure but remain guardians of constitutional boundaries.

STATE-LEGISLATURE ANSWER UNIT

Claim: Articles 208-212 protect internal procedure without placing legislative action above the Constitution.

Named evidence: Articles 208-212; Keshav Singh (1965), Raja Ram Pal (2007), Kihoto Hollohan (1992) and Sita Soren (2024).

Analysis: Courts avoid correcting mere internal procedural defects but review illegality, lack of jurisdiction, mala fides and constitutional violations.

Qualification: Article 212's text protects proceedings only against challenge for alleged procedural irregularity and protects procedural officers acting under constitutional powers.

Evidence to deploy: Articles 208-212; Keshav Singh (1965), Raja Ram Pal (2007), Kihoto Hollohan (1992) and Sita Soren (2024).

Prelims trap: Do not equate procedural irregularity with substantive illegality.

Mains use: State the shield, identify the challenged defect, and classify it before concluding on review.

Mini recap: Legislative autonomy is real but constitutionally bounded.

CLOSING RECALL FLOW - ARTICLES 208-212: PROCEDURE, LANGUAGE AND JUDICIAL RESTRAINT

START / CONCEPT: Articles 208-212: procedure, language and judicial restraint
|
v
EXACT TERMS: Article 208 · Article 209 · Article 210 · Article 211 · Article 212
|
v
MECHANISM / ARGUMENT: Houses manage internal procedure, while courts intervene for substantive illegality, mala fides or jurisdictional error.
|
v
CONSEQUENCE / CONTRAST: The boundary protects deliberative independence without placing legislatures above the Constitution.
|
v
UPSC TRAP / ANSWER-USE: Article 212 does not immunise defection adjudication, bribery or substantive unconstitutionality.
|
v
ANSWER-GRABBING FORMULATION: Legislative autonomy and judicial review coexist through the irregularity-versus-illegality distinction.

SESSION 27 - FULL ARTICLES 168-212 RAPID MAP

VISUAL FIRST - CONCEPT GATEWAY

168-177 design -> 178-195 House institutions -> 196-207 law/finance -> 208-212 procedure/review

Caption: This gateway fixes the session's controlling constitutional relationship before detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Articles 168-212 form one continuous map from House design to judicial restraint.

Technical definition: The sequence covers composition, duration, membership, sessions, officers, privilege, Bills, finance and procedure.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

A rapid Article map helps route factual questions to the correct institution and legal consequence.

MUST-WRITE KEYWORDS

- Articles 168-212
- composition
- officers
- Bills
- financial procedure

How to use them: Frame the answer through Articles 168-212; define composition, connect officers with Bills to explain the mechanism, and use financial procedure for the decisive comparison or qualification.

Article	Recall
168	Constitution of State legislatures
169	Creation/abolition of Councils
170	Assembly composition
171	Council composition
172	Duration
173	Qualifications
174	Sessions, prorogation, dissolution

Article	Recall
175	Governor's address/messages
176	Special address
177	Rights of ministers and Advocate General
178-181	Assembly presiding officers
182-185	Council presiding officers
186-187	Salaries and secretariat
188	Oath
189	Voting, vacancies and quorum
190	Vacation of seats
191	Disqualification
192	Decision on disqualification
193	Penalty for unauthorised sitting/voting
194-195	Privileges and salaries
196-197	Ordinary Bills and Council limitation
198-199	Money Bills
200-201	Assent and reserved Bills
202-207	Financial procedure
208-212	Rules, language, judges and courts

STATE-LEGISLATURE ANSWER UNIT

Claim: Articles 168-212 form a connected institutional sequence rather than an Article list.

Named evidence: Part VI, Chapter III of the Constitution.

Analysis: Following the sequence reveals why composition, confidence, procedure, finance and review allocate primacy to the Assembly.

Qualification: The map aids retrieval but each Article still requires its operative rule and exception.

Evidence to deploy: Part VI, Chapter III of the Constitution.

Prelims trap: Do not write bare Article numbers without legal meaning.

Mains use: Use the sequence as an answer skeleton, then add mechanism, cases and qualification.

Mini recap: Design leads to membership, procedure, lawmaking, finance and bounded autonomy.

CLOSING RECALL FLOW - FULL ARTICLES 168-212 RAPID MAP

START / CONCEPT: Full Articles 168-212 rapid map

|

v

EXACT TERMS: Articles 168-212 · composition · officers · Bills · financial procedure

|

v

MECHANISM / ARGUMENT: Move in constitutional order from institutional design through membership and procedure to finance and review limits.

|

v

CONSEQUENCE / CONTRAST: Structured recall prevents mixing Assembly, Council, Governor and presiding-officer powers.

|

v

UPSC TRAP / ANSWER-USE: The map is a retrieval tool, not a substitute for mechanisms and case-law qualifications.

|

v

ANSWER-GRABBING FORMULATION: A rapid Article map helps route factual questions to the correct institution and legal consequence.

POLITY HOSTILE SEMANTIC-REVIEW CORE CONTROL

- **Must remember:** Audit Articles 168-212 through legislature shape, Article 169, composition, duration, membership, officers, sessions, privileges, ordinary and financial Bills, budget, procedure and judicial-review limits.
- **Close distinction:** Keep the Council's four-month ordinary-Bill delay, fourteen-day Money-Bill role and absence of a State joint sitting distinct. Article 207(1) and 207(3) financial Bills are not automatically Money Bills.
- **Legal/source limit:** Six States retain Councils. The 106th Amendment is commenced but its reservation is not operational; Census 2027 reference dates do not equal publication of figures or commencement of delimitation.

Semantic-completeness ownership and PYQ control

- **Constitutional map:** Article 168 permits one or two Houses with the Governor as a component of the legislature. Articles 169-177 govern creation, composition, duration, qualification and participation; Articles 178-187 officers; Articles 188-212 oath, voting, disqualification, privileges, legislation, finance, procedure and judicial non-interference.
 - **Article 169 route:** the Assembly first resolves by a majority of total membership plus two-thirds present and voting; Parliament then creates or abolishes the Council by ordinary law and simple majority. The resulting law is expressly not an Article 368 constitutional amendment.
 - **Composition:** the Assembly is directly elected and normally has 60-500 members subject to special provisions. A Council may not exceed one-third of Assembly strength and ordinarily has at least forty members; Article 171's local-body, graduate, teacher, MLA and nominated fractions must remain exact.
 - **Duration and officers:** the Assembly normally lasts five years and may be dissolved; the Council is permanent with one-third retiring every second year. Speaker/Deputy Speaker and Chairman/Deputy Chairman have distinct removal, vacancy, casting-vote and continuity rules.
 - **Bicameral inequality:** Article 197 allows a Council to delay an ordinary Bill for three months and then one month after Assembly repassage. There is no State joint sitting. A Council-originated Bill rejected by the Assembly ends.
 - **Finance firewall:** Money Bills originate only in the Assembly, receive a fourteen-day recommendatory Council review and Speaker certification. Article 207(1) mixed financial Bills and Article 207(3) expenditure Bills are distinct; neither category becomes a Money Bill merely because expenditure is involved.
 - **Lapse and procedure:** prorogation does not lapse Bills; Council-only pending Bills survive Assembly dissolution; Assembly-pending and Assembly-passed/ Council-pending Bills lapse. Article 212 protects procedural irregularity, not substantive illegality or unconstitutionality.
 - **Presiding-officer review:** Kihoto Hollohan (1992) makes the Speaker a Tenth-Schedule

tribunal subject to review. Keisham Meghachandra supplies the ordinarily three-month norm; Padi Kaushik Reddy (2025) directed the Telangana Speaker to conclude ten pending petitions within three months and confirms that Articles 122/212 immunity does not attach to Paragraph 6 adjudication.

- **Current representation control:** Andhra Pradesh, Bihar, Karnataka,

Maharashtra, Telangana and Uttar Pradesh retain Councils. The 106th Amendment commenced on 16 April 2026 but reservation remains dormant until the Article 334A census-publication-delimitation sequence. Census 2027 reference dates are notified; publication and delimitation dates are not.

- **Four-ledger/PYQ control:** all direct and routed 2018-2025 Council,

presiding-officer, Bill, finance and assent demands were retained. Parliament's Union procedure and the Governor's executive doctrine remain cross-owned.

SESSION 28 - ARTICLE 213: ORDINANCE-LEGISLATURE INTERFACE

VISUAL FIRST - TEMPORARY LAWMAKING LOOP

specified House-recess condition + immediate action necessary

- > Governor promulgates within State legislative competence
- > ordinance has Act-like force
- > mandatory laying before House or Houses
- > approval, withdrawal/disapproval, or expiry six weeks after later reassembly

Caption: An ordinance bridges a genuine recess; it does not replace ordinary legislative deliberation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 213 permits temporary lawmaking only when the constitutionally specified legislature is not in session and immediate action is necessary.

Technical definition: The Governor may promulgate an ordinance within State legislative competence when, in a unicameral State, the Assembly is not in session or, in a bicameral State, both Houses are not in session; presidential instructions are required in the three constitutionally specified reservation/sanction situations.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 213 is a temporary necessity bridge back to the legislature, not a parallel source of routine executive legislation.

MUST-WRITE KEYWORDS

- **Article 213**
- **recess condition**
- **immediate action**
- **legislative competence**
- **six weeks after later reassembly**
- **mandatory laying**
- [FACT] An ordinance has the same force and effect as a State Act but is subject to the same competence and constitutional limitations.
- [FACT] It must be laid before the House or Houses and ordinarily ceases six weeks after the later reassembly date where the Houses reassemble on different dates.
- [FACT] *D. C. Wadhwa v. State of Bihar* (1987) condemned routine repromulgation as a fraud on the Constitution.
- [FACT] *Krishna Kumar Singh v. State of Bihar* (2017), seven judges, held laying mandatory, made satisfaction reviewable on limited grounds and rejected automatic survival of every ordinance-created effect.
- [LIMIT] A short adjournment is not the constitutional test; the relevant House or Houses must not be in session as Article 213 specifies.

STATE-LEGISLATURE ANSWER UNIT

Claim: Ordinance power is constitutionally subordinate to State legislative scrutiny.

Named evidence: Article 213; *D. C. Wadhwa* (1987); *Krishna Kumar Singh* (2017).

Analysis: The power meets urgent gaps in legislative availability, but laying and expiry return political responsibility to the elected House.

Qualification: Necessity does not enlarge State legislative competence or authorise constitutional amendment, and repromulgation cannot become normal governance.

Evidence to deploy: Article 213's session condition, presidential-instruction proviso, six-week rule and the two Bihar ordinance cases.

Prelims trap: Do not say an ordinance may be issued merely because one House has adjourned for a day or that it continues indefinitely.

Mains use: Use the temporary-bridge model to connect executive necessity with legislative supremacy and anti-repromulgation review.

Mini recap: Recess plus necessity permits temporary law; laying, competence and expiry preserve legislative primacy.

CLOSING RECALL FLOW - ARTICLE 213

RECESS CONDITION -> NECESSITY -> COMPETENCE -> ORDINANCE -> LAYING -> SIX-WEEK CONTROL
|
-> no routine repromulgation

ASCII MASTER FLOW DIAGRAM - 12-PANEL DATA-COMPLETE SPINE

ASCII PANEL 1/12 - Core concept and constitutional origin

ASCII MASTER FLOW - PANEL 1/12: Core concept and constitutional origin

CENTRAL IDEA

Articles 168-212 create the State legislature: Governor + Assembly in every State, with a Council only where the Constitution and an Article 169 law provide one.

ORIGIN / TIMELINE

1861-1935: colonial legislative councils widen representation but retain executive dominance.

1935 Act: provincial autonomy and bicameral experience influence Constitution-making.

1950: Part VI, Chapter III commences.

1957/1985/2007: Andhra Pradesh Council created, abolished, and revived.

1969: Punjab and West Bengal Councils abolished by parliamentary laws.

1986: Tamil Nadu Council abolished; later revival legislation did not become operational.

2019: former Jammu and Kashmir Council ended through reorganisation.

DESIGN VERDICT

Assembly = direct mandate + confidence + supply + final ordinary-Bill control.

Council = optional continuity + reconsideration, never a co-equal federal chamber.

ASCII PANEL 2/12 - Articles 168-177: composition, duration, sessions and participation

ASCII MASTER FLOW - PANEL 2/12: Articles 168-177: composition, duration, sessions and participation

ARTICLE 168 -> Governor plus one or two Houses; Governor is not a House member.

ARTICLE 169 -> Assembly total-membership majority + two-thirds present/voting; Parliament may then create/abolish Council by ordinary law, not Article 368 amendment.

ARTICLE 170 -> Assembly directly elected from territorial constituencies; ordinary range 60-500, subject to constitutional/statutory exceptions and delimitation controls.

ARTICLE 171 -> Council <= one-third Assembly and >=40; 1/3 local bodies, 1/12 graduates, 1/12 teachers, 1/3 MLAs elect non-MLAs, remainder nominated for named fields.

ARTICLE 172 -> Assembly five years unless dissolved; Council continuing body.

ARTICLE 173 -> citizenship, oath-related requirement, age 25 Assembly / 30 Council, statutory qualifications.

ARTICLE 174 -> summon/prorogue/dissolve Assembly; no fixed session count; six-month maximum gap rule.

ARTICLE 175 -> Governor may address either/both Houses and send messages.

ARTICLE 176 -> special address after general election and first session each year.

ARTICLE 177 -> Ministers and Advocate-General may participate; vote follows membership.

ASCII PANEL 3/12 - Articles 178-193: officers, oath, voting, vacancy and disqualification

ASCII MASTER FLOW - PANEL 3/12: Articles 178-193: officers, oath, voting, vacancy and disqualification

ARTICLES 178-181 -> Assembly Speaker/Deputy Speaker: election, vacancy, acting and removal safeguards.

ARTICLES 182-185 -> Council Chairman/Deputy Chairman mirror, without Assembly-dissolution rule.

ARTICLE 186 -> salaries/allowances fixed by State law; constitutional interim protection.

ARTICLE 187 -> separate State-legislature secretarial staff; State law may regulate service conditions.

ARTICLE 188 -> oath/affirmation before Governor or appointed person before taking seat.

ARTICLE 189 -> majority present/voting; chair's casting vote; vacancies do not invalidate; default quorum ten or one-tenth, whichever greater, until State law provides otherwise.

ARTICLE 190 -> double membership, resignation accepted only if voluntary/genuine, and sixty-day absence route with constitutional exclusions.

ARTICLE 191 -> office of profit, court-declared unsound mind, insolvency, citizenship/allegiance, parliamentary-law grounds; clause (2) adds Tenth Schedule.

ARTICLE 192 -> Governor decides Article 191(1) sitting-member questions and must follow ECI opinion.

ARTICLE 193 -> Rs 500 per day liability for knowingly sitting/voting without oath or while barred.

ASCII PANEL 4/12 - Privileges, ethics and judicial boundaries

ASCII MASTER FLOW - PANEL 4/12: Privileges, ethics and judicial boundaries

ARTICLE 194

speech/vote and authorised-publication immunity + House/member/committee privileges.

Protection is functional; it is not a licence for bribery or unrelated criminality.

ARTICLE 195 -> member salaries/allowances by State law.

1978 - 44TH AMENDMENT, SECTION 26

amended Article 194(3): removed the House of Commons reference and preserved the pre-commencement privilege baseline until the State Legislature defines privileges by law.

SPECIAL REFERENCE NO. 1 OF 1964 / KESHAV SINGH (1965)

Legislative privilege and judicial power must coexist; jurisdictional constitutional questions remain reviewable.

RAJA RAM PAL (2007)

Expulsion/privilege power exists, but substantive illegality, mala fides and unconstitutionality remain reviewable.

AMARINDER SINGH (2010)

Punjab Assembly could not use privilege-based expulsion for conduct lacking the required nexus to House functioning.

SITA SOREN (2024)

Articles 105/194 do not immunise bribery connected with speech or vote.

ARTICLE 212 SHIELD

mere procedural irregularity is protected; substantive illegality is not.

ASCII PANEL 5/12 - Ordinary Bills, deadlock and lapse

ASCII MASTER FLOW - PANEL 5/12: Ordinary Bills, deadlock and lapse

ARTICLE 196 BASELINE

ordinary Bill may originate in either House in a bicameral State; prorogation does not lapse Bills.

ARTICLE 197 ASSEMBLY OVERRIDE

Assembly passes -> Council rejects / disagrees / holds >3 months

-> Assembly repasses in same or next session

-> Council rejects / disagrees / holds >1 month

-> Bill deemed passed in Assembly's second-passage form.

NO STATE JOINT SITTING

Article 108 is a Union mechanism; there is no State counterpart.

LAPSE ON ASSEMBLY DISSOLUTION

pending in Assembly -> lapses.

passed by Assembly, pending in Council -> lapses.

pending in Council, not passed by Assembly -> does not lapse.

passed by required House(s), awaiting Governor/President -> does not lapse.

COUNCIL-ORIGINATED BILL

If Assembly rejects it, Article 197 supplies no Council override.

ASCII PANEL 6/12 - Money Bills, Financial Bills and Assembly primacy

ASCII MASTER FLOW - PANEL 6/12: Money Bills, Financial Bills and Assembly primacy

ARTICLE 198

Money Bill: Assembly-only introduction on Governor's recommendation;

Council may recommend within 14 days; Assembly accepts or rejects.

ARTICLE 199

only listed matters + incidental matters qualify; Assembly Speaker certifies.

ARTICLE 207(1) FINANCIAL BILL-I

contains Article 199(1)(a)-(f) matter plus other matter;

Governor recommendation + Assembly-only introduction; then ordinary-Bill treatment.

ARTICLE 207(3) FINANCIAL BILL-II

would involve expenditure from Consolidated Fund;

may originate either House, but cannot be passed without recommendation for consideration.

ASSEMBLY PRIMACY

confidence under Article 164(2) + grants under Article 203 + Money Bill control.

Council neither removes ministry nor votes demands for grants.

TRAP

expenditure consequence alone does not convert every Financial Bill into a Money Bill.

ASCII PANEL 7/12 - Articles 200-201: assent and reservation after the 2025 doctrine

ASCII MASTER FLOW - PANEL 7/12: Articles 200-201: assent and reservation after the 2025 doctrine

ARTICLE 200 - THREE CONSTITUTIONAL OPTIONS (2025 INSC 1333)

1 assent;

2 reserve for President;

3 withhold and return with comments, only for a non-Money Bill.

First proviso restricts/implements withholding; it is not a fourth free-standing option.

Second proviso mandates reservation if High Court powers are derogated so as to endanger its position.

ARTICLE 201

President may assent or withhold; may direct return of a non-Money Bill through Governor.

State House(s) reconsider within six months; re-passage does not compel presidential assent.

STATE OF PUNJAB (10 NOV 2023)

No indefinite inaction; withholding linked to return under the first proviso.

STATE OF TAMIL NADU (8 APR 2025, 2025 INSC 481)

On its facts invalidated second-round reservation, prescribed timelines and used Article 142 deemed assent.

ARTICLE 143 OPINION (20 NOV 2025, 2025 INSC 1333)

Called general timeline/deemed-assent reasoning erroneous; no rigid clock or deemed assent;

no pre-enactment merits review; limited mandamus for glaring prolonged unexplained inaction.

It advised on law; it did not appellate-set aside the Tamil Nadu inter partes relief.

ASCII PANEL 8/12 - Articles 202-207: budget, grants and appropriation

ASCII MASTER FLOW - PANEL 8/12: Articles 202-207: budget, grants and appropriation

ARTICLE 202 -> annual financial statement: receipts/expenditure; charged versus voted.

ARTICLE 203 -> charged expenditure discussed, not voted; Assembly alone votes demands for grants.

Governor recommendation is required for a demand.

ARTICLE 204 -> Appropriation Bill authorises withdrawal from Consolidated Fund;

no amendment may vary amount/destination or charged expenditure.

ARTICLE 205 -> supplementary, additional and excess grants use the Articles 202-204 logic.

ARTICLE 206 -> vote on account, vote of credit and exceptional grant.

ARTICLE 207 -> recommendation and introduction controls for financial Bills.

ACCOUNTABILITY CHAIN

estimate -> debate -> grant vote -> appropriation -> execution -> audit -> PAC follow-up.

COUNCIL LIMIT

may discuss the financial statement but cannot vote grants or overcome Assembly control.

ASCII PANEL 9/12 - Questions, motions, committees and local House practice

ASCII MASTER FLOW - PANEL 9/12: Questions, motions, committees and local House practice
CONSTITUTIONAL TEXT

Article 164(2): ministry collectively responsible to Assembly.

Article 208: each House makes procedural rules, subject to Constitution.

Articles 202-207: financial accountability framework.

LOCAL HOUSE RULES / DIRECTIONS / CONVENTIONS

Question Hour, Zero Hour or special mention, calling attention, short-duration discussion, adjournment/censure/no-confidence motions, cut motions, privilege procedure and committee details. Names, notices, admissibility, membership and referral vary by State.

COMMITTEE FUNCTIONS

PAC -> appropriation and CAG-linked audit.

Estimates -> economy, efficiency and estimate presentation.

Public Undertakings -> State enterprise scrutiny.

Privileges/Ethics/Petitions/Subordinate Legislation/subject committees -> specialised control.

HARD LIMIT

Do not copy Lok Sabha rule numbers, committee sizes or a fixed DRSC structure into every State.

ASCII PANEL 10/12 - Anti-defection, Speaker neutrality and case chronology

ASCII MASTER FLOW - PANEL 10/12: Anti-defection, Speaker neutrality and case chronology

1985 - 52ND AMENDMENT, SECTION 5

inserted Article 191(2); section 6 inserted Tenth Schedule.

2003 - 91ST AMENDMENT, SECTION 5

removed paragraph 3 split protection; two-thirds merger protection remains under paragraph 4.

KIHOTO HOLLOHAN (1992)

Presiding officer is a tribunal; final decision is judicially reviewable on recognised grounds.

RAVI NAIK (1994)

Voluntarily giving up membership may be inferred from conduct, not only formal resignation.

RAJENDRA SINGH RANA (2007)

Speaker cannot avoid deciding disqualification by accepting an unsupported split claim.

NABAM REBIA (2016)

Speaker-removal notice restricted adjudication; correctness referred by SUBHASH DESAI (2023).

KEISHAM MEGHACHANDRA (2020)

Absent exceptional circumstances, petitions should ordinarily be decided within three months;

Court urged Parliament to consider an independent tribunal.

SUBHASH DESAI (2023)

Political party, not a legislature-party faction, appoints the authorised whip/leader;

larger-Bench reference leaves Nabam Rebia issue unresolved.

PADI KAUSHIK REDDY (31 JUL 2025)

Review survives and Telangana petitions received a case-specific three-month direction.

ASCII PANEL 11/12 - Representation, amendments, Council comparison and Article 213

ASCII MASTER FLOW - PANEL 11/12: Representation, amendments, Council comparison and Article 213

1976 - 42ND AMENDMENT, SECTION 38

amended Article 170 delimitation/readjustment framework and introduced the freeze architecture.

2001 - 84TH AMENDMENT, SECTION 5

amended Article 170: extended freeze to first post-2026 census publication and enabled limited readjustment.

2003 - 87TH AMENDMENT, SECTION 4

substituted 2001 for 1991 census references in Article 170.

2019 - 104TH AMENDMENT, SECTION 2

amended Article 334: SC/ST reservation extended; Anglo-Indian special representation ceased after its period.

2023 - 106TH AMENDMENT, SECTIONS 2-5

inserted Delhi clauses and Articles 330A, 332A, 334A; one-third reservation for women in

Lok Sabha/Assemblies, including within SC/ST seats, operates after Article 334A census-delimitation sequence.

It does not cover Legislative Councils.

S.O. 1922(E), 16 April 2026 commenced the Amendment; commencement did not itself activate reserved seats.

ARTICLE 213 ORDINANCE

specified House-recess condition + immediate-action satisfaction + State legislative competence;

Act-like force, mandatory laying and expiry six weeks after later reassembly unless earlier ended.

D.C. WADHWA (1987) and KRISHNA KUMAR SINGH (2017) reject routine repromulgation.

ASCII PANEL 12/12 - Prelims traps, reform and Mains answer spine

ASCII MASTER FLOW - PANEL 12/12: Prelims traps, reform and Mains answer spine

PRELIMS FIREWALL

Governor is legislature component, not House member.

Article 169: Assembly special majority; Parliament ordinary law.

Article 174: six-month maximum gap; no fixed three sessions or annual sitting minimum.

Council: 3+1 month ordinary-Bill delay; 14-day Money-Bill recommendation; no joint sitting.

Article 192 route excludes Tenth Schedule.

Article 212 shields procedural irregularity, not illegality.

Article 213 is temporary and competence-bound.

No invented current Council strength or uniform House-rule number.

REFORM MENU

minimum evidence-based sitting calendar; default committee scrutiny with stated exceptions;

research and drafting support; protected Question Hour; reasoned/timely chair rulings;

narrower confidence-linked whip; independent defection tribunal debate;

modernise Council electorates and nominations; post-legislative review.

MAINS SPINE

define -> locate exact Article -> classify text/statute/rule/convention/judgment

-> explain mechanism -> name evidence -> test democratic/accountability effect

-> state exception/status -> targeted reform -> qualified verdict.

VERDICT

Assembly primacy is constitutionally deliberate; legitimacy improves when primacy is matched

by deliberation, impartial procedure, financial scrutiny and reviewable constitutional boundaries.

BASIC MCQS / REMEDIATION

Exactly 32 original MCQs - answer key ABCD x 8

MCQ 1. State bicameralism

Which statement is correct?

A. Every State has an Assembly, while only specified States have a Council. B. Parliament alone may initiate a Council without State action. C. The Governor is outside the State legislature. D. Every State must have two Houses.

Answer: A.

Option explanations:

- **A:** Correct. Option A states "Every State has an Assembly, while only specified States have a Council." The controlling rule is: Article 168 makes the Assembly universal, while a Council exists only in the constitutionally specified bicameral design.
- **B:** Incorrect. Option B states "Parliament alone may initiate a Council without State action." The controlling rule is: Article 168 makes the Assembly universal, while a Council exists only in the constitutionally specified bicameral design.
- **C:** Incorrect. Option C states "The Governor is outside the State legislature." The controlling rule is: Article 168 makes the Assembly universal, while a Council exists only in the constitutionally specified bicameral design.
- **D:** Incorrect. Option D states "Every State must have two Houses." The controlling rule is: Article 168 makes the Assembly universal, while a Council exists only in the constitutionally specified bicameral design.

Examiner trap: Governor-plus-House composition does not make the Governor a House member.

MCQ 2. Article 169

Parliament may create a Council after:

A. a simple-majority Council resolution. B. an Assembly special-majority resolution. C. presidential reference to the Supreme Court. D. ratification by half the States.

Answer: B.

Option explanations:

- **A:** Incorrect. Option A states "a simple-majority Council resolution." The controlling rule is: Article 169 requires the Assembly's total-membership majority plus two-thirds present and voting before Parliament may legislate.
- **B:** Correct. Option B states "an Assembly special-majority resolution." The controlling rule is: Article 169 requires the Assembly's total-membership majority plus two-thirds present and voting before Parliament may legislate.
- **C:** Incorrect. Option C states "presidential reference to the Supreme Court." The controlling rule is: Article 169 requires the Assembly's total-membership majority plus two-thirds present and voting before Parliament may legislate.
- **D:** Incorrect. Option D states "ratification by half the States." The controlling rule is: Article 169 requires the Assembly's total-membership majority plus two-thirds present and voting before Parliament may legislate.

Examiner trap: The Article 169 special majority belongs to the Assembly resolution, not Parliament's Act.

MCQ 3. Parliamentary majority

The Article 169 law is passed by Parliament:

A. by two-thirds of total membership. B. only in a joint sitting. C. as an ordinary law by simple majority. D. only after State ratification.

Answer: C.

Option explanations:

- **A:** Incorrect. Option A states "by two-thirds of total membership." The controlling rule is: Parliament's Article 169 law follows ordinary legislation and is expressly not treated as an Article 368 amendment.
- **B:** Incorrect. Option B states "only in a joint sitting." The controlling rule is: Parliament's Article 169 law follows ordinary legislation and is expressly not treated as an Article 368 amendment.
- **C:** Correct. Option C states "as an ordinary law by simple majority." The controlling rule is: Parliament's Article 169 law follows ordinary legislation and is expressly not treated as an Article 368 amendment.
- **D:** Incorrect. Option D states "only after State ratification." The controlling rule is: Parliament's Article 169 law follows ordinary legislation and is expressly not treated as an Article 368 amendment.

Examiner trap: An Article 169 law may alter constitutional text incidentally without becoming an Article 368 amendment.

MCQ 4. Council strength

The Council's strength is ordinarily:

A. at least 60. B. fixed by the Governor. C. exactly half the Assembly. D. not more than one-third of Assembly strength and not below 40.

Answer: D.

Option explanations:

- **A:** Incorrect. Option A states "at least 60." The controlling rule is: Article 171 caps a Council at one-third of Assembly strength and sets an ordinary minimum of forty.
- **B:** Incorrect. Option B states "fixed by the Governor." The controlling rule is: Article 171 caps a Council at one-third of Assembly strength and sets an ordinary minimum of forty.
- **C:** Incorrect. Option C states "exactly half the Assembly." The controlling rule is: Article 171 caps a Council at one-third of Assembly strength and sets an ordinary minimum of forty.
- **D:** Correct. Option D states "not more than one-third of Assembly strength and not below 40." The controlling rule is: Article 171 caps a Council at one-third of Assembly strength and sets an ordinary minimum of forty.

Examiner trap: Do not substitute a sixty-member minimum for Article 171's forty-member floor.

MCQ 5. Local bodies

Approximately what share of a Council is elected by local authorities?

A. One-third. B. One-sixth. C. One-twelfth. D. Two-thirds.

Answer: A.

Option explanations:

- **A:** Correct. Option A states "One-third." The controlling rule is: Article 171 allocates approximately one-third of Council seats to specified local authorities.
- **B:** Incorrect. Option B states "One-sixth." The controlling rule is: Article 171 allocates approximately one-third of Council seats to specified local authorities.
- **C:** Incorrect. Option C states "One-twelfth." The controlling rule is: Article 171 allocates approximately one-third of Council seats to specified local authorities.
- **D:** Incorrect. Option D states "Two-thirds." The controlling rule is: Article 171 allocates approximately one-third of Council seats to specified local authorities.

Examiner trap: Local-authority members are not elected by the whole State electorate.

MCQ 6. Graduates

Graduates elect:

A. one-third. B. one-twelfth. C. half. D. one-sixth.

Answer: B.

Option explanations:

- **A:** Incorrect. Option A states "one-third." The controlling rule is: The graduate and teacher electoral streams each account for approximately one-twelfth under Article 171.
- **B:** Correct. Option B states "one-twelfth." The controlling rule is: The graduate and teacher electoral streams each account for approximately one-twelfth under Article 171.
- **C:** Incorrect. Option C states "half." The controlling rule is: The graduate and teacher electoral streams each account for approximately one-twelfth under Article 171.
- **D:** Incorrect. Option D states "one-sixth." The controlling rule is: The graduate and teacher electoral streams each account for approximately one-twelfth under Article 171.

Examiner trap: Graduate and teacher constituencies are separate one-twelfth streams.

MCQ 7. Governor nominations

The Governor nominates:

A. all teacher members. B. one-third of the Assembly. C. one-sixth of the Council. D. one-twelfth of the Council.

Answer: C.

Option explanations:

- **A:** Incorrect. Option A states "all teacher members." The controlling rule is: The Governor nominates the remainder, approximately one-sixth, from the five constitutionally named fields.
- **B:** Incorrect. Option B states "one-third of the Assembly." The controlling rule is: The Governor nominates the remainder, approximately one-sixth, from the five constitutionally named fields.
- **C:** Correct. Option C states "one-sixth of the Council." The controlling rule is: The Governor nominates the remainder, approximately one-sixth, from the five constitutionally named fields.
- **D:** Incorrect. Option D states "one-twelfth of the Council." The controlling rule is: The Governor nominates the remainder, approximately one-sixth, from the five constitutionally named fields.

Examiner trap: The nomination fields are literature, science, art, co-operative movement and social service; 'education' is not the text.

MCQ 8. Council duration

Which is correct?

A. Half retires every three years. B. Council dissolves with the Assembly. C. Council has a five-year collective term. D. Council is permanent and one-third retires every two years.

Answer: D.

Option explanations:

- **A:** Incorrect. Option A states "Half retires every three years." The controlling rule is: A Council is continuing; roughly one-third retires every second year and members ordinarily serve six years.
- **B:** Incorrect. Option B states "Council dissolves with the Assembly." The controlling rule is: A Council is continuing; roughly one-third retires every second year and members ordinarily serve six years.
- **C:** Incorrect. Option C states "Council has a five-year collective term." The controlling rule is: A Council is continuing; roughly one-third retires every second year and members ordinarily serve six years.
- **D:** Correct. Option D states "Council is permanent and one-third retires every two years." The controlling rule is: A Council is continuing; roughly one-third retires every second year and members ordinarily serve six years.

Examiner trap: Permanent House does not mean permanent membership.

MCQ 9. Minimum age

Minimum age for Assembly membership is:

A. 25. B. 30. C. 35. D. 21.

Answer: A.

Option explanations:

- **A:** Correct. Option A states "25." The controlling rule is: Article 173 sets the minimum age at twenty-five for an Assembly seat and thirty for a Council seat.
- **B:** Incorrect. Option B states "30." The controlling rule is: Article 173 sets the minimum age at twenty-five for an Assembly seat and thirty for a Council seat.
- **C:** Incorrect. Option C states "35." The controlling rule is: Article 173 sets the minimum age at twenty-five for an Assembly seat and thirty for a Council seat.
- **D:** Incorrect. Option D states "21." The controlling rule is: Article 173 sets the minimum age at twenty-five for an Assembly seat and thirty for a Council seat.

Examiner trap: Assembly and Council candidacy ages are not identical.

MCQ 10. Assembly term

The normal Assembly term is:

A. permanent. B. five years unless sooner dissolved. C. six years. D. four years.

Answer: B.

Option explanations:

- **A:** Incorrect. Option A states "permanent." The controlling rule is: Article 172 gives an Assembly a normal five-year life from its first meeting unless sooner dissolved.
- **B:** Correct. Option B states "five years unless sooner dissolved." The controlling rule is: Article 172 gives an Assembly a normal five-year life from its first meeting unless sooner dissolved.
- **C:** Incorrect. Option C states "six years." The controlling rule is: Article 172 gives an Assembly a normal five-year life from its first meeting unless sooner dissolved.
- **D:** Incorrect. Option D states "four years." The controlling rule is: Article 172 gives an Assembly a normal five-year life from its first meeting unless sooner dissolved.

Examiner trap: The five-year Assembly period runs from its first meeting and remains subject to earlier dissolution.

MCQ 11. Quorum

State House quorum is:

A. one-fifth. B. one-tenth, with no minimum. C. until the State Legislature otherwise provides by law, ten members or one-tenth, whichever is greater. D. exactly ten in every House.

Answer: C.

Option explanations:

- **A:** Incorrect. Option A states "one-fifth." The controlling rule is: Article 189's default is ten members or one-tenth of total membership, whichever is greater, until State law provides otherwise.
- **B:** Incorrect. Option B states "one-tenth, with no minimum." The controlling rule is: Article 189's default is ten members or one-tenth of total membership, whichever is greater, until State law provides otherwise.
- **C:** Correct. Option C states "until the State Legislature otherwise provides by law, ten members or one-tenth, whichever is greater." The controlling rule is: Article 189's default is ten members or one-tenth of total membership, whichever is greater, until State law provides otherwise.
- **D:** Incorrect. Option D states "exactly ten in every House." The controlling rule is: Article 189's default is ten members or one-tenth of total membership, whichever is greater, until State law provides otherwise.

Examiner trap: The quorum rule includes both the ten-member floor and the 'until otherwise provided by law' clause.

MCQ 12. Casting vote

The presiding officer:

A. cannot vote in a tie. B. has two ordinary votes. C. always votes first. D. ordinarily has no first vote but has a casting vote on equality.

Answer: D.

Option explanations:

- **A:** Incorrect. Option A states "cannot vote in a tie." The controlling rule is: Under Article 189 the presiding officer ordinarily has no first vote but has a casting vote on equality.
- **B:** Incorrect. Option B states "has two ordinary votes." The controlling rule is: Under Article 189 the presiding officer ordinarily has no first vote but has a casting vote on equality.
- **C:** Incorrect. Option C states "always votes first." The controlling rule is: Under Article 189 the presiding officer ordinarily has no first vote but has a casting vote on equality.
- **D:** Correct. Option D states "ordinarily has no first vote but has a casting vote on equality." The controlling rule is: Under Article 189 the presiding officer ordinarily has no first vote but has a casting vote on equality.

Examiner trap: A casting vote is triggered by equality; it is not a second ordinary vote.

MCQ 13. Speaker after dissolution

On Assembly dissolution, the Speaker:

A. continues until immediately before the first meeting of the new Assembly. B. becomes Governor. C. vacates immediately. D. continues for six months regardless of the new House.

Answer: A.

Option explanations:

- **A:** Correct. Option A states "continues until immediately before the first meeting of the new Assembly." The controlling rule is: Article 179 continues the Speaker until immediately before the first meeting of the new Assembly.
- **B:** Incorrect. Option B states "becomes Governor." The controlling rule is: Article 179 continues the Speaker until immediately before the first meeting of the new Assembly.
- **C:** Incorrect. Option C states "vacates immediately." The controlling rule is: Article 179 continues the Speaker until immediately before the first meeting of the new Assembly.
- **D:** Incorrect. Option D states "continues for six months regardless of the new House." The controlling rule is: Article 179 continues the Speaker until immediately before the first meeting of the new Assembly.

Examiner trap: Assembly dissolution does not instantly vacate the Speaker.

MCQ 14. Speaker removal

Removal requires:

A. Governor's order. B. majority of all then members after 14 days' notice. C. simple majority of those present without notice. D. two-thirds of total membership.

Answer: B.

Option explanations:

- **A:** Incorrect. Option A states "Governor's order." The controlling rule is: Speaker removal requires fourteen days' notice and a majority of all the then members of the Assembly.
- **B:** Correct. Option B states "majority of all then members after 14 days' notice." The controlling rule is: Speaker removal requires fourteen days' notice and a majority of all the then members of the Assembly.
- **C:** Incorrect. Option C states "simple majority of those present without notice." The controlling rule is: Speaker removal requires fourteen days' notice and a majority of all the then members of the Assembly.
- **D:** Incorrect. Option D states "two-thirds of total membership." The controlling rule is: Speaker removal requires fourteen days' notice and a majority of all the then members of the Assembly.

Examiner trap: Removal uses an effective majority of all then members, not two-thirds of total membership.

MCQ 15. Defection adjudicator

Tenth Schedule State-member disqualification is initially decided by:

A. High Court. B. Governor on ECI advice. C. Speaker or Chairman. D. Chief Minister.

Answer: C.

Option explanations:

- **A:** Incorrect. Option A states "High Court." The controlling rule is: Tenth Schedule paragraph 6 assigns the initial decision to the Speaker or Chairman, subject to judicial review.
- **B:** Incorrect. Option B states "Governor on ECI advice." The controlling rule is: Tenth Schedule paragraph 6 assigns the initial decision to the Speaker or Chairman, subject to judicial review.
- **C:** Correct. Option C states "Speaker or Chairman." The controlling rule is: Tenth Schedule paragraph 6 assigns the initial decision to the Speaker or Chairman, subject to judicial review.
- **D:** Incorrect. Option D states "Chief Minister." The controlling rule is: Tenth Schedule paragraph 6 assigns the initial decision to the Speaker or Chairman, subject to judicial review.

Examiner trap: Article 192 and Tenth Schedule paragraph 6 use different decision-makers.

MCQ 16. Article 192

For a non-defection Article 191 disqualification question, the Governor:

A. acts personally without advice from any institution. B. sends it to Parliament. C. refers it to the Speaker. D. obtains and acts according to the Election Commission's opinion.

Answer: D.

Option explanations:

- **A:** Incorrect. Option A states "acts personally without advice from any institution." The controlling rule is: Article 192 requires the Governor to obtain and act according to the Election Commission's opinion for Article 191(1) questions.
- **B:** Incorrect. Option B states "sends it to Parliament." The controlling rule is: Article 192 requires the Governor to obtain and act according to the Election Commission's opinion for Article 191(1) questions.
- **C:** Incorrect. Option C states "refers it to the Speaker." The controlling rule is: Article 192 requires the Governor to obtain and act according to the Election Commission's opinion for Article 191(1) questions.
- **D:** Correct. Option D states "obtains and acts according to the Election Commission's opinion." The controlling rule is: Article 192 requires the Governor to obtain and act according to the Election Commission's opinion for Article 191(1) questions.

Examiner trap: The Governor must follow the ECI opinion under Article 192.

MCQ 17. Ordinary Bill delay

Maximum Council delay across Article 197 stages is approximately:

A. four months. B. six months. C. one year. D. fourteen days.

Answer: A.

Option explanations:

- **A:** Correct. Option A states "four months." The controlling rule is: Article 197 permits a maximum three-month first delay and one-month second delay by the Council.
- **B:** Incorrect. Option B states "six months." The controlling rule is: Article 197 permits a maximum three-month first delay and one-month second delay by the Council.
- **C:** Incorrect. Option C states "one year." The controlling rule is: Article 197 permits a maximum three-month first delay and one-month second delay by the Council.
- **D:** Incorrect. Option D states "fourteen days." The controlling rule is: Article 197 permits a maximum three-month first delay and one-month second delay by the Council.

Examiner trap: Three months plus one month is delay, not an absolute veto.

MCQ 18. Joint sitting

For disagreement between State Houses:

A. President chairs a joint sitting. B. no constitutional joint sitting exists. C. Governor always calls a joint sitting. D. Supreme Court resolves amendments.

Answer: B.

Option explanations:

- **A:** Incorrect. Option A states "President chairs a joint sitting." The controlling rule is: The Constitution provides no joint sitting for disagreement between the two State Houses.
- **B:** Correct. Option B states "no constitutional joint sitting exists." The controlling rule is: The Constitution provides no joint sitting for disagreement between the two State Houses.
- **C:** Incorrect. Option C states "Governor always calls a joint sitting." The controlling rule is: The Constitution provides no joint sitting for disagreement between the two State Houses.
- **D:** Incorrect. Option D states "Supreme Court resolves amendments." The controlling rule is: The Constitution provides no joint sitting for disagreement between the two State Houses.

Examiner trap: Article 108's joint sitting has no State-level mirror.

MCQ 19. Money Bill introduction

A State Money Bill may be introduced:

A. only in the Council. B. in either House. C. only in the Assembly. D. only in Parliament.

Answer: C.

Option explanations:

- **A:** Incorrect. Option A states "only in the Council." The controlling rule is: A State Money Bill can be introduced only in the Legislative Assembly.
- **B:** Incorrect. Option B states "in either House." The controlling rule is: A State Money Bill can be introduced only in the Legislative Assembly.
- **C:** Correct. Option C states "only in the Assembly." The controlling rule is: A State Money Bill can be introduced only in the Legislative Assembly.
- **D:** Incorrect. Option D states "only in Parliament." The controlling rule is: A State Money Bill can be introduced only in the Legislative Assembly.

Examiner trap: A Money Bill cannot originate in the Council.

MCQ 20. Council on Money Bill

The Council:

A. can amend conclusively. B. can reject permanently. C. has three months. D. may recommend within 14 days.

Answer: D.

Option explanations:

- **A:** Incorrect. Option A states "can amend conclusively." The controlling rule is: The Council has fourteen days to make recommendations on a Money Bill; the Assembly decides whether to accept them.
- **B:** Incorrect. Option B states "can reject permanently." The controlling rule is: The Council has fourteen days to make recommendations on a Money Bill; the Assembly decides whether to accept them.
- **C:** Incorrect. Option C states "has three months." The controlling rule is: The Council has fourteen days to make recommendations on a Money Bill; the Assembly decides whether to accept them.
- **D:** Correct. Option D states "may recommend within 14 days." The controlling rule is: The Council has fourteen days to make recommendations on a Money Bill; the Assembly decides whether to accept them.

Examiner trap: Council recommendations on a Money Bill never bind the Assembly.

MCQ 21. Money Bill certificate

Who certifies a State Money Bill?

A. Assembly Speaker. B. Advocate General. C. Governor. D. Council Chairman.

Answer: A.

Option explanations:

- **A:** Correct. Option A states "Assembly Speaker." The controlling rule is: Article 199 assigns final constitutional certification of a State Money Bill to the Assembly Speaker.
- **B:** Incorrect. Option B states "Advocate General." The controlling rule is: Article 199 assigns final constitutional certification of a State Money Bill to the Assembly Speaker.
- **C:** Incorrect. Option C states "Governor." The controlling rule is: Article 199 assigns final constitutional certification of a State Money Bill to the Assembly Speaker.
- **D:** Incorrect. Option D states "Council Chairman." The controlling rule is: Article 199 assigns final constitutional certification of a State Money Bill to the Assembly Speaker.

Examiner trap: Speaker certification and gubernatorial recommendation are different steps.

MCQ 22. Confidence

The State Council of Ministers is collectively responsible to:

A. the Governor personally. B. the Legislative Assembly. C. the Legislative Council. D. both Houses equally.

Answer: B.

Option explanations:

- **A:** Incorrect. Option A states "the Governor personally." The controlling rule is: Article 164(2) makes the State Council of Ministers collectively responsible to the Legislative Assembly.
- **B:** Correct. Option B states "the Legislative Assembly." The controlling rule is: Article 164(2) makes the State Council of Ministers collectively responsible to the Legislative Assembly.
- **C:** Incorrect. Option C states "the Legislative Council." The controlling rule is: Article 164(2) makes the State Council of Ministers collectively responsible to the Legislative Assembly.
- **D:** Incorrect. Option D states "both Houses equally." The controlling rule is: Article 164(2) makes the State Council of Ministers collectively responsible to the Legislative Assembly.

Examiner trap: Council debate cannot replace Assembly confidence.

MCQ 23. Demands for grants

Demands for grants are voted by:

A. the Council alone. B. the Governor. C. the Assembly alone. D. both Houses.

Answer: C.

Option explanations:

- **A:** Incorrect. Option A states "the Council alone." The controlling rule is: Article 203 submits demands for grants only to the vote of the Legislative Assembly.
- **B:** Incorrect. Option B states "the Governor." The controlling rule is: Article 203 submits demands for grants only to the vote of the Legislative Assembly.
- **C:** Correct. Option C states "the Assembly alone." The controlling rule is: Article 203 submits demands for grants only to the vote of the Legislative Assembly.
- **D:** Incorrect. Option D states "both Houses." The controlling rule is: Article 203 submits demands for grants only to the vote of the Legislative Assembly.

Examiner trap: The Council may discuss finance but cannot vote demands for grants.

MCQ 24. Charged expenditure

Charged expenditure:

A. requires a joint sitting. B. is neither discussed nor voted. C. is voted only by Council. D. may be discussed but is not voted.

Answer: D.

Option explanations:

- **A:** Incorrect. Option A states "requires a joint sitting." The controlling rule is: Charged expenditure may be discussed but is not submitted to vote under Article 203.
- **B:** Incorrect. Option B states "is neither discussed nor voted." The controlling rule is: Charged expenditure may be discussed but is not submitted to vote under Article 203.
- **C:** Incorrect. Option C states "is voted only by Council." The controlling rule is: Charged expenditure may be discussed but is not submitted to vote under Article 203.
- **D:** Correct. Option D states "may be discussed but is not voted." The controlling rule is: Charged expenditure may be discussed but is not submitted to vote under Article 203.

Examiner trap: Charged expenditure is discussable even though it is not voted.

MCQ 25. Article 200 return

The Governor may return for reconsideration:

A. a non-Money Bill. B. a demand for grant. C. a constitutional amendment Bill. D. a Money Bill only.

Answer: A.

Option explanations:

- **A:** Correct. Option A states "a non-Money Bill." The controlling rule is: The first proviso to Article 200 permits return only of a non-Money Bill for reconsideration.
- **B:** Incorrect. Option B states "a demand for grant." The controlling rule is: The first proviso to Article 200 permits return only of a non-Money Bill for reconsideration.
- **C:** Incorrect. Option C states "a constitutional amendment Bill." The controlling rule is: The first proviso to Article 200 permits return only of a non-Money Bill for reconsideration.
- **D:** Incorrect. Option D states "a Money Bill only." The controlling rule is: The first proviso to Article 200 permits return only of a non-Money Bill for reconsideration.

Examiner trap: A Money Bill cannot be returned under Article 200's first proviso.

MCQ 26. Mandatory reservation

Reservation for the President is mandatory where a Bill:

A. changes House rules. B. endangers the constitutional position of the High Court by derogating from its powers. C. alters a municipal boundary. D. creates a Council.

Answer: B.

Option explanations:

- **A:** Incorrect. Option A states "changes House rules." The controlling rule is: The second proviso to Article 200 mandates reservation where derogation from High Court powers endangers its constitutional position.
- **B:** Correct. Option B states "endangers the constitutional position of the High Court by derogating from its powers." The controlling rule is: The second proviso to Article 200 mandates reservation where derogation from High Court powers endangers its constitutional position.
- **C:** Incorrect. Option C states "alters a municipal boundary." The controlling rule is: The second proviso to Article 200 mandates reservation where derogation from High Court powers endangers its constitutional position.
- **D:** Incorrect. Option D states "creates a Council." The controlling rule is: The second proviso to Article 200 mandates reservation where derogation from High Court powers endangers its constitutional position.

Examiner trap: The High Court-protection proviso is mandatory, unlike a general policy disagreement.

MCQ 27. Article 201

After a reserved non-Money Bill is returned and repassed:

A. Governor must enact it without presentation. B. President must assent. C. presidential assent is not constitutionally compelled. D. it becomes law automatically.

Answer: C.

Option explanations:

- **A:** Incorrect. Option A states "Governor must enact it without presentation." The controlling rule is: Under Article 201, repassage after a presidentially directed return does not constitutionally compel presidential assent.
- **B:** Incorrect. Option B states "President must assent." The controlling rule is: Under Article 201, repassage after a presidentially directed return does not constitutionally compel presidential assent.
- **C:** Correct. Option C states "presidential assent is not constitutionally compelled." The controlling rule is: Under Article 201, repassage after a presidentially directed return does not constitutionally compel presidential assent.
- **D:** Incorrect. Option D states "it becomes law automatically." The controlling rule is: Under Article 201, repassage after a presidentially directed return does not constitutionally compel presidential assent.

Examiner trap: Article 201 contains no repassage command equivalent to Article 200's text.

MCQ 28. Assent status

The November 2025 advisory opinion supports:

A. rigid judicial timelines in every case. B. absolute non-justiciability of inaction. C. automatic deemed assent after one month. D. limited review of prolonged unexplained inaction without deemed assent.

Answer: D.

Option explanations:

- **A:** Incorrect. Option A states "rigid judicial timelines in every case." The controlling rule is: The 2025 Article 143 opinion rejects rigid judicial timelines and deemed assent but preserves limited mandamus for glaring prolonged inaction.
- **B:** Incorrect. Option B states "absolute non-justiciability of inaction." The controlling rule is: The 2025 Article 143 opinion rejects rigid judicial timelines and deemed assent but preserves limited mandamus for glaring prolonged inaction.
- **C:** Incorrect. Option C states "automatic deemed assent after one month." The controlling rule is: The 2025 Article 143 opinion rejects rigid judicial timelines and deemed assent but preserves limited mandamus for glaring prolonged inaction.
- **D:** Correct. Option D states "limited review of prolonged unexplained inaction without deemed assent." The controlling rule is: The 2025 Article 143 opinion rejects rigid judicial timelines and deemed assent but preserves limited mandamus for glaring prolonged inaction.

Examiner trap: Limited mandamus to act is not judicial selection of assent, withholding or reservation.

MCQ 29. Privilege

Article 194 primarily protects:

A. member speech and votes in the House/committees. B. every private act of a legislator. C. the Governor as a House member. D. all party communications.

Answer: A.

Option explanations:

- **A:** Correct. Option A states "member speech and votes in the House/committees." The controlling rule is: Article 194 protects speech, votes and legislative functions; it does not create general personal criminal immunity.
- **B:** Incorrect. Option B states "every private act of a legislator." The controlling rule is: Article 194 protects speech, votes and legislative functions; it does not create general personal criminal immunity.
- **C:** Incorrect. Option C states "the Governor as a House member." The controlling rule is: Article 194 protects speech, votes and legislative functions; it does not create general personal criminal immunity.
- **D:** Incorrect. Option D states "all party communications." The controlling rule is: Article 194 protects speech, votes and legislative functions; it does not create general personal criminal immunity.

Examiner trap: Sita Soren removes bribery from the privilege shield.

MCQ 30. Article 212

Article 212 bars courts from questioning proceedings merely for:

A. lack of legislative competence. B. procedural irregularity. C. mala fides. D. violation of Fundamental Rights.

Answer: B.

Option explanations:

- **A:** Incorrect. Option A states "lack of legislative competence." The controlling rule is: Article 212 bars challenge merely for procedural irregularity, not review of substantive constitutional illegality.
- **B:** Correct. Option B states "procedural irregularity." The controlling rule is: Article 212 bars challenge merely for procedural irregularity, not review of substantive constitutional illegality.
- **C:** Incorrect. Option C states "mala fides." The controlling rule is: Article 212 bars challenge merely for procedural irregularity, not review of substantive constitutional illegality.
- **D:** Incorrect. Option D states "violation of Fundamental Rights." The controlling rule is: Article 212 bars challenge merely for procedural irregularity, not review of substantive constitutional illegality.

Examiner trap: Procedural irregularity and substantive illegality are not synonyms.

MCQ 31. Women's reservation

The 106th Amendment reservation applies to:

A. Rajya Sabha and Councils. B. every nominated seat. C. Lok Sabha and State Legislative Assemblies, subject to activation conditions. D. Legislative Councils only.

Answer: C.

Option explanations:

- **A:** Incorrect. Option A states "Rajya Sabha and Councils." The controlling rule is: Article 332A covers State Legislative Assemblies, while Article 334A postpones operation until the census-publication and delimitation sequence.
- **B:** Incorrect. Option B states "every nominated seat." The controlling rule is: Article 332A covers State Legislative Assemblies, while Article 334A postpones operation until the census-publication and delimitation sequence.
- **C:** Correct. Option C states "Lok Sabha and State Legislative Assemblies, subject to activation conditions." The controlling rule is: Article 332A covers State Legislative Assemblies, while Article 334A postpones operation until the census-publication and delimitation sequence.
- **D:** Incorrect. Option D states "Legislative Councils only." The controlling rule is: Article 332A covers State Legislative Assemblies, while Article 334A postpones operation until the census-publication and delimitation sequence.

Examiner trap: Women's reservation does not extend to Legislative Councils and commencement is not electoral operation.

MCQ 32. Article 213 ordinance interface

Under Article 213, which statement is correct?

A. The Governor may promulgate an ordinance whenever one House adjourns for a day. B. A State ordinance survives until the legislature expressly repeals it. C. A State ordinance may amend the Constitution within that State. D. The power is recess-conditioned, competence-bound and subject to later legislative scrutiny.

Answer: D.

Option explanations:

- **A:** Incorrect. Option A states "The Governor may promulgate an ordinance whenever one House adjourns for a day." The controlling rule is: Article 213 is conditioned by legislative recess, immediate necessity, competence, laying and the six-week reassembly control.
- **B:** Incorrect. Option B states "A State ordinance survives until the legislature expressly repeals it." The controlling rule is: Article 213 is conditioned by legislative recess, immediate necessity, competence, laying and the six-week reassembly control.
- **C:** Incorrect. Option C states "A State ordinance may amend the Constitution within that State." The controlling rule is: Article 213 is conditioned by legislative recess, immediate necessity, competence, laying and the six-week reassembly control.
- **D:** Correct. Option D states "The power is recess-conditioned, competence-bound and subject to later legislative scrutiny." The controlling rule is: Article 213 is conditioned by legislative recess, immediate necessity, competence, laying and the six-week reassembly control.

Examiner trap: An ordinance is not a constitutional amendment, permanent Act or substitute for legislative sessions.

PYQS AND ANSWER PRACTICE

Audited Mains PYQs

PYQ-M1 - UPSC CSE Mains 2021, GS-II, Q14

Official paper wording: "Explain the constitutional provisions under which Legislative Councils are established. Review the working and current status of Legislative Councils with suitable illustrations." **15 marks | 250 words**

Model answer: Legislative Councils are optional second chambers. Article 168 permits bicameral State legislatures; Article 169 requires an Assembly resolution supported by a majority of total membership and two-thirds present and voting, after which Parliament may enact an ordinary law. Article 171 fixes mixed indirect composition: local authorities, graduates, teachers and MLAs elect five-sixths, while the Governor nominates the remainder from specified fields. The Council is continuing, with one-third retiring every two years.

Its working is deliberately subordinate. Under Article 197 it may delay an ordinary Bill for three months and, after Assembly repassage, one month; no joint sitting exists. Under Articles 198-199 it may only recommend changes to a Money Bill within fourteen days. It cannot vote grants or remove the ministry, which is responsible to the Assembly.

Councils can check haste, preserve continuity and represent local or expert voices. Yet occupational electorates, patronage, cost and weak committee capacity may make them duplicative. Their value is therefore State-specific: retain where independent scrutiny is demonstrable, reform electorates and nominations, and use Article 169 abolition where the chamber remains merely ornamental.

PYQ-M2 - UPSC CSE Mains 2023, GS-II, Q5

Official paper wording: "Discuss the role of Presiding Officers of state legislatures in maintaining order and impartiality in conducting legislative work and in facilitating best democratic practices." **10 marks | 150 words**

Model answer: Presiding officers are the procedural guardians of State legislatures. Articles 178-185 establish the Speaker, Deputy Speaker, Chairman and Deputy Chairman with removal safeguards. They maintain order, interpret House rules, admit questions and motions, recognise speakers and committees, and use a casting vote under Article 189. The Assembly Speaker also certifies Money Bills under Article 199 and the presiding officer decides Tenth Schedule petitions.

These powers shape debate, finance and even government survival. Continued party affiliation and strategic delay can therefore damage neutrality. *Kihoto Hollohan* makes defection decisions reviewable; *Keisham Meghachandra* stated an ordinarily three-month norm absent exceptional circumstances; *Subhash Desai* protected the political party's authority over the whip.

Impartiality requires reasoned rulings, equal speaking opportunities, timely decisions, stronger secretariats and reconsideration of the presiding officer's defection role. Convention matters, but institutional insulation makes neutrality credible.

Audited objective PYQs - official-key discipline

PYQ-P1 - UPSC Prelims 2018, GS-I, official paper

Consider the following statements:

1. The Speaker of the Legislative Assembly shall vacate his/her office if he/she ceases to be a member of the Assembly.
2. Whenever the Legislative Assembly is dissolved, the Speaker shall vacate his/her office immediately.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Answer withheld pending official UPSC key.

Doctrinal solution: Article 179 makes statement 1 correct and statement 2 incorrect: the Speaker continues until immediately before the first meeting of the new Assembly.

PYQ-P2 - UPSC Prelims 2019, GS-I, Q53

With reference to the Legislative Assembly of a State in India, consider the following statements:

1. The Governor makes a customary address to Members of the House at the commencement of the first session of the year.
2. When a State Legislature does not have a rule on a particular matter, it follows the Lok Sabha rule on that matter.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Answer withheld pending official UPSC key.

Doctrinal solution: Article 176 requires the special address at the first session each year; Article 208 lets a House make its own rules and does not automatically import Lok Sabha rules.

PYQ-P3 - UPSC Prelims 2025, GS-I, Q59, Set A

With reference to the Indian polity, consider the following statements:

1. The Governor of a State is not answerable to any court for the exercise and performance of the powers and duties of his/her office.
2. No criminal proceedings shall be instituted or continued against the Governor during his/her term of office.
3. Members of a State Legislature are not liable to any proceedings in any court in respect of anything said within the House.

Which of the statements given above are correct?

A. 1 and 2 only B. 2 and 3 only C. 1 and 3 only D. 1, 2 and 3

Official Set-A answer: D.

Doctrinal solution: Article 361 supplies the first two personal immunities and Article 194(2) supplies the member speech immunity. The official locally held final Set-A key marks D.

Exactly six original Mains questions with model solutions

Original Q1 - 10 marks, answer in not more than 150 words

"A Legislative Council is a revising convenience, not a revising power." Examine.

Model answer (126 words): A Legislative Council gives a State Bill a second deliberative stage but cannot defeat the directly elected Assembly. Article 197 permits a first delay of up to three months and a second delay of one month after Assembly repassage; there is no State joint sitting. Articles 198-199 reduce its Money Bill role to recommendations within fourteen days. It cannot vote demands for grants or remove the ministry because Article 164(2) makes the Council of Ministers responsible only to the Assembly. These limits preserve democratic primacy while allowing continuity, expert participation and exposure of drafting defects. However, delay adds value only where membership and committee work produce independent scrutiny. Where the chamber merely reproduces party patronage, cost and duplication dominate. The Council is therefore a revising convenience whose justification must be demonstrated State by State.

Original Q2 - 10 marks, answer in not more than 150 words

Analyse the neutrality problem of the State Legislative Assembly Speaker.

Model answer (137 words): The Speaker protects orderly and equal deliberation, yet combines procedural authority with continuing party affiliation. Articles 178-181 secure the office; Article 189 gives a casting vote; Article 199 assigns Money Bill certification; and Tenth Schedule paragraph 6 makes the Speaker the initial defection adjudicator. These powers can determine agenda, finance and government survival. *Kihoto Hollohan* subjected defection decisions to judicial review, while *Keisham Meghachandra* stated that petitions should ordinarily be decided within three months absent exceptional circumstances. *Subhash Desai* held that the political party, not a legislature-party faction, appoints the authorised whip and leader. Judicial review corrects abuse after or around decision, but cannot supply daily impartiality. Reasoned rulings, protected debate time, professional secretariats and an independent defection tribunal deserve consideration. Neutrality should be institutionally supported rather than left entirely to personal convention.

Original Q3 - 15 marks, answer in not more than 250 words

Reconcile the 2023 Punjab Governor judgment, the 2025 Tamil Nadu judgment and the 2025 Article 143 opinion on Articles 200-201.

Model answer (195 words): Article 200 places a completed State Bill before the Governor, while Article 201 governs a Bill reserved for the President. The constitutional problem is how to prevent paralysis without replacing the named decision-maker.

In *State of Punjab v. Principal Secretary to the Governor* (2023), the Supreme Court rejected indefinite inaction and read withholding with the first-proviso return mechanism. In *State of Tamil Nadu v. Governor of Tamil Nadu* (8 April 2025), the Court invalidated the second-round reservation of repassed Bills, prescribed timelines and, on its facts, used Article 142 to deem assent to ten Bills.

The five-judge advisory opinion of 20 November 2025, 2025 INSC 1333, stated that Article 200 offers three options: assent; reserve; or withhold and return a non-Money Bill with comments. It held that courts cannot prescribe rigid general timelines, conduct pre-enactment merits review, substitute the constitutional decision under Article 142 or create deemed assent. Yet glaring, prolonged, unexplained and indefinite inaction remains open to limited mandamus requiring action within reasonable time.

The opinion is advisory, not an appellate order setting aside Tamil Nadu's inter partes relief. The current synthesis is therefore: no pocket veto, no judicially invented assent, and bounded review focused on inaction rather than merits.

Original Q4 - 15 marks, answer in not more than 250 words

Explain how Articles 202-207 establish Assembly primacy while retaining constitutional financial discipline.

Model answer (183 words): Articles 202-207 convert executive fiscal proposals into legislative authority. Article 202 requires the annual financial statement and separates charged from voted expenditure. Article 203 allows discussion of charged expenditure but submits demands for grants only to the Assembly, and only on the Governor's recommendation. Article 204 then requires appropriation before withdrawal from the Consolidated Fund. Articles 205-206 accommodate supplementary, additional, excess and exceptional needs without bypassing legislative authorisation.

Article 207 distinguishes financial categories. A Bill containing Article 199(1)(a)-(f) matters requires gubernatorial recommendation and Assembly-only introduction. A Bill merely involving expenditure from the Consolidated Fund may originate in either House but cannot be passed without recommendation for consideration. Neither category is automatically a Money Bill; classification depends on content.

This architecture gives the confidence chamber control of supply while preserving discussion and audit. A Council may discuss the budget but cannot vote demands or bind the Assembly on a Money Bill. Assembly primacy, however, is not executive licence: meaningful control still requires adequate debate, committee examination, CAG-linked Public Accounts Committee follow-up and transparent supplementary demands. Constitutional power becomes accountability only through effective House practice.

Original Q5 - 20 marks, answer in not more than 250 words

Evaluate the institutional causes of weak State legislative scrutiny and propose targeted reforms.

Model answer (217 words): State legislatures possess substantial formal powers over law, confidence and finance, but institutional conditions often reduce scrutiny. Article 174 sets only a maximum inter-session gap, not a minimum annual sitting calendar. Governments can therefore compress business into short sessions. Rushed passage narrows amendment and opposition opportunity; weak research support increases member dependence on departments; discretionary committee referral limits evidence-based review; and delayed replies weaken questions and assurances. Ordinance reliance under Article 213 may further shift initiative to the executive, although *D. C. Wadhwa* and *Krishna Kumar Singh* reject routine repromulgation.

Presiding-officer incentives compound the problem. Control over admissibility, debate, Money Bill certification and defection timing affects government survival. *Kihoto Hollohan*, *Keisham Meghachandra* and *Subhash Desai* preserve review, timeliness and political-party authority, but litigation is a late safeguard. Councils can provide a second look, yet Articles 197-199 leave them unable to defeat Assembly preference.

Reform should target mechanisms: an evidence-based minimum sitting calendar; protected Question Hour and opposition time; publication and pre-legislative consultation; default committee referral with reasoned exceptions; professional non-partisan research and drafting services; time-bound executive responses to committee reports; transparent, reasoned rulings; and reconsideration of the Speaker's defection jurisdiction. Uniform national copying should be avoided because State rules and capacities differ. Stronger process, not merely more institutions, converts

Assembly primacy into accountable representative government.

Original Q6 - 20 marks, answer in not more than 250 words

Compare Parliament and a bicameral State legislature, focusing on second-chamber power, deadlock, lapse and ordinance control.

Model answer (221 words): Parliament and a bicameral State legislature share responsible-government logic but allocate second-chamber power differently. At the Union, the Rajya Sabha represents States, is broadly co-equal on ordinary and constitutional-amendment Bills and has special powers under Articles 249 and 312. A Legislative Council has mixed local, occupational, MLA-elected and nominated membership under Article 171 and no equivalent federal role.

For an ordinary State Bill, Article 197 allows a Council delay of three months and, after Assembly repassage, one month. The Assembly's second-passage text then prevails. Unlike Article 108 at the Union, there is no State joint sitting. A Council-originated Bill rejected by the Assembly ends. Under Article 196, prorogation does not lapse Bills; a Bill pending in the Assembly, or passed by it and pending in the Council, lapses on dissolution, while a Council-only pending Bill does not.

Financial asymmetry is sharper. Articles 198-199 give the Council only a fourteen-day recommendatory role on Money Bills, while Article 203 reserves grant voting to the Assembly. The ministry is responsible only to the Assembly.

Article 213 mirrors the temporary-law principle of Article 123 but operates within State competence and its specific recess condition. Mandatory laying and six-week expiry after later reassembly, reinforced by *D. C. Wadhwa* and *Krishna Kumar Singh*, prevent ordinance government. Thus parliamentary comparison is useful only after each constitutional mechanism is separately decoded.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

1. Constituent design and asymmetric bicameralism

The Constitution did not make State bicameralism a federal necessity. The Assembly carries direct representation and responsible-government functions, while Article 169 allows institutional variation. This explains why a Council's defence must rest on demonstrated scrutiny and representation rather than an analogy with the Rajya Sabha.

2. Council composition reform

Graduate and teacher constituencies reflected historical ideas of scarce organised expertise. Modern evaluation may test whether the electorates remain inclusive, whether local-body representation is effective, whether nomination is merit-based, and whether committee output justifies cost. Reform proposals must respect Article 171 until constitutionally changed.

3. Presiding officer as tribunal

The Tenth Schedule combines political-office membership with adjudication. Moving the function to an independent tribunal could reduce delay incentives, but would require a constitutional change and a design that preserves speed, expertise and review. Narrowing the whip to confidence and core financial matters addresses deliberative freedom but is also a reform proposal, not current law.

4. Privilege, ethics and criminal law

Privilege protects institutional functioning. *Keshav Singh*, *Raja Ram Pal* and *Amarinder Singh* preserve judicial review at constitutional boundaries; *Sita Soren* rejects bribery immunity. Ethics committees and privilege committees serve different purposes: unethical conduct is not automatically contempt, and privilege cannot become a general code of political morality.

5. Assent, federalism and judicial remedies

Articles 200-201 protect constitutional scrutiny and Union oversight, but delay can defeat elected lawmaking. The 2025 Article 143 opinion narrows the remedy: courts may compel action in glaring prolonged inaction, but cannot impose universal clocks, review a Bill's merits before enactment, substitute the decision or deem assent. This produces a process-focused rather than outcome-substituting judicial role.

6. Comparative and reform synthesis

The best reform package combines more sitting time, predictable calendars, committee referral, research capacity, transparent chair rulings, modernised Council representation, restrained ordinance use and post-legislative review. No single reform cures partisan incentives; each must identify the constitutional mechanism it improves.

CONSOLIDATED REGISTER NOTES

Constitutional architecture and evolution

- **Article 168:** Governor plus Assembly in every State; Council only in the constitutionally specified bicameral design. The Governor is not a House member.
- **Article 169:** Assembly total-membership majority plus two-thirds present and voting; Parliament may then legislate by ordinary law. The resolution alone changes nothing.
- Colonial councils and the Government of India Act, 1935 supplied institutional experience; the Constitution chose optional, asymmetric State bicameralism.
- Historical creation and abolition show reversibility: Andhra Pradesh's create-abolish-revive cycle; Punjab and West Bengal abolition in 1969; Tamil Nadu abolition in 1986; former Jammu and Kashmir Council ending in 2019.

Composition, representation and duration

- **Article 170:** Assembly direct territorial election; ordinary range 60-500 subject to valid exceptions.
- **Article 171:** Council ceiling one-third of Assembly and ordinary floor forty; 1/3 local bodies, 1/12 graduates, 1/12 teachers, 1/3 elected by MLAs from non-MLAs, remainder nominated from literature, science, art, co-operative movement and social service.
- Elected Council streams use proportional representation by single transferable vote.
- **Article 172:** Assembly normally five years from first meeting unless sooner dissolved; Council continuing; one-third retires every two years.
- **Article 173:** citizenship, oath-related requirement, ages 25/30 and parliamentary-law qualifications.

Sessions, participation and officers

- **Article 174:** no fixed three-session rule or annual sitting minimum; maximum six-month constitutional gap between specified sittings.
- **Articles 175-176:** optional address/messages versus mandatory special-address occasions.
- **Article 177:** Ministers and Advocate-General may participate across Houses and committees; voting still depends on membership.
- **Articles 178-187:** presiding officers, effective-majority removal, fourteen-day notice, acting arrangements, salaries and independent secretarial staff. Assembly Speaker survives dissolution until immediately before the new House first meets.

Membership and disqualification

- **Article 188:** oath before taking seat.
- **Article 189:** present-and-voting majority, casting vote, validity despite vacancies, default quorum ten or one-tenth whichever greater until State law provides otherwise.
- **Article 190:** double membership, voluntary/genuine resignation and sixty-day absence route.
- **Articles 191-192:** constitutional/statutory disqualifications decided by Governor according to ECI opinion; Tenth Schedule is separate.
- **Article 193:** Rs 500 per day constitutional liability for knowingly sitting/voting while barred.
- **52nd Amendment (1985), sections 5-6:** Article 191(2) and Tenth Schedule link.
- **91st Amendment (2003):** removed the paragraph 3 split exception; paragraph 4 merger protection remains.

Privilege, ethics and review

- **Article 194:** functional speech, vote and publication protection; **Article 195:** salaries/allowances.
- **44th Amendment (1978), section 26:** replaced the House of Commons reference in Article 194(3) with the pre-commencement privilege baseline until State law defines privileges.
- *Keshav Singh* (1965): privilege and judicial authority coexist.
- *Raja Ram Pal* (2007): privilege action reviewable for substantive constitutional defects.
- *Amarinder Singh* (2010): privilege sanction needs nexus with legislative functioning.
- *Sita Soren* (2024): bribery is outside Articles 105/194 immunity.
- **Article 212:** procedural irregularity shield, not immunity for substantive illegality, mala fides, jurisdictional error or constitutional violation.

Bills, deadlock and lapse

- **Article 196:** ordinary Bill baseline; prorogation does not lapse Bills.
- **Article 197:** Council delay 3 months plus 1 month after Assembly repassage; no State joint sitting; Assembly text prevails.
- Assembly-pending and Assembly-passed/Council-pending Bills lapse on Assembly dissolution; Council-only pending Bills do not.
- **Articles 198-199:** Assembly-only Money Bill introduction; Council recommendations within fourteen days; Speaker certification.
- **Articles 200-201:** assent, return/withhold and reservation routes; mandatory High Court-protection reservation; presidential reconsideration route has no compelled assent after repassage.

2023-2025 assent doctrine

- *State of Punjab* (2023): no indefinite inaction; withholding linked to return.
- *State of Tamil Nadu* (8 April 2025): timelines and deemed assent on the case facts.
- Article 143 opinion, 20 November 2025, **2025 INSC 1333:** three Article 200 options; Governor has discretion in choosing; no pre-enactment merits review, rigid judicial timelines or deemed assent; limited mandamus remains for glaring prolonged unexplained inaction.
- Relationship: later advisory opinion disapproved the general timeline/deemed-assent reasoning but did not appellate-set aside Tamil Nadu's inter partes relief.

Finance and accountability

- **202:** annual financial statement. **203:** charged expenditure discussed, grants voted only by Assembly. **204:** appropriation.
- **205:** supplementary/additional/excess grants. **206:** vote on account, vote of credit, exceptional grant.
- **207(1):** Article 199(1)(a)-(f) financial matter requires recommendation and Assembly introduction.
- **207(3):** Consolidated Fund expenditure Bill may originate either House but cannot pass without recommendation; it is not automatically a Money Bill.
- Questions, motions and committees derive from Article 208 plus local rules/directions/conventions; never invent uniform State procedures or committee sizes.

Speaker and anti-defection cases

- *Kihoto Hollohan* (1992): presiding officer acts as tribunal; final decision reviewable.
- *Ravi Naik* (1994): voluntarily giving up may be inferred from conduct.
- *Rajendra Singh Rana* (2007): unsupported split claim cannot avoid disqualification adjudication.
- *Nabam Rebia* (2016): removal-notice restriction; correctness referred in *Subhash Desai* (2023).
- *Keisham Meghachandra* (2020): ordinarily three months absent exception; independent tribunal suggested.
- *Subhash Desai* (2023): political party controls authorised whip/leader; Governor cannot decide factional legitimacy.
- *Padi Kaushik Reddy* (2025): review and case-specific three-month direction for Telangana petitions.

Representation amendments

- **42nd Amendment (1976), section 38:** amended Article 170's delimitation/readjustment framework.
- **84th Amendment (2001), section 5:** extended Article 170 freeze to the first census after 2026 publication and enabled limited readjustment.
- **87th Amendment (2003), section 4:** replaced 1991 with 2001 census references in Article 170.
- **104th Amendment (2019), section 2:** amended Article 334; SC/ST reservation extended while Anglo-Indian special representation ceased after its constitutional period.
- **106th Amendment (2023), sections 2-5:** inserted Delhi clauses and Articles 330A, 332A, 334A. It commenced by S.O. 1922(E) on 16 April 2026, but Assembly reservation still awaits Article 334A's census-publication and delimitation sequence; Councils are excluded.

Council versus Assembly and Parliament

Dimension	Assembly	Legislative Council	Rajya Sabha comparison
Mandate	Direct territorial election	Indirect mixed + nomination	State representation through elected MLAs
Continuity	Dissolvable	Continuing	Continuing
Confidence	Controls ministry	No removal power	Union ministry responsible to Lok Sabha
Ordinary Bills	Final State control	3+1 month delay	Broad co-equality; Article 108 deadlock route
Money/grants	Dominant	14-day recommendations; no grant vote	14-day Money Bill recommendations
Special role	State popular chamber	No federal special power	Articles 249 and 312
Existence	Mandatory	Reversible under Article 169	Constitutionally permanent chamber

Article 213 interface and reforms

- Ordinance requires the specified recess condition, immediate-action satisfaction and State competence; it must be laid and ordinarily ends six weeks after later reassembly.
- *D. C. Wadhwa* (1987): routine repromulgation is a fraud on the Constitution.
- *Krishna Kumar Singh* (2017): laying mandatory, satisfaction reviewable on limited grounds, effects do not automatically survive.
- Reforms: evidence-based sitting calendar; protected questions/opposition time; default committee referral with reasoned exceptions; research staff; transparent chair rulings; timely defection decisions; modernised Council electorates/nominations; restrained ordinances; post-legislative review.

Final answer spine

Define the chamber and Article -> distinguish constitutional text, statute, House rule, convention and case law -> explain the mechanism -> use named evidence -> assess democratic or accountability effect -> state the exception/current status -> propose a matched reform -> conclude that Assembly primacy must be balanced by deliberation, financial scrutiny, neutral procedure and constitutional review.